

A PRACTITIONER'S REFERENCE

The Commercial Eviction Handbook

*A 50-State Guide to Notice, Self-Help, Jurisdiction, Timing &
Damages*

2026 Edition

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Scope. This handbook addresses commercial (non-residential) tenancies only. Residential eviction statutes, residential tenant-protection rules, and residential-specific notice, cure, and hardship provisions are intentionally excluded throughout this handbook, and should never be relied upon for a residential tenancy. Where a state's eviction statute governs both commercial and residential tenancies through the same code sections, this handbook presents only the provisions and analysis relevant to commercial tenancies.

Revision basis. The Texas and California chapters were independently verified against primary statutory and rule sources through August 2026. The remaining forty-eight state chapters and the District of Columbia chapter were independently re-researched and verified against current primary sources as part of this 2026 Edition. Any chapter containing a point that could not be independently verified with confidence is flagged in that chapter, and the reader is directed to confirm the specific point with local counsel before relying on it.

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How to Use This Handbook

This handbook is organized as a jurisdiction-by-jurisdiction quick-reference guide for commercial landlords, in-house real estate counsel, and outside counsel evaluating how to recover possession of leased commercial premises following a tenant default. Each chapter addresses the same five core questions:

- Statutory Notice — Does the state require a default or pay-or-vacate notice before a commercial landlord may file suit, and if so, how much notice and delivered how?
- Self-Help / Commercial Lockout — Is self-help (typically a lockout) an available remedy for a commercial lease default, and under what conditions?
- Jurisdiction and Venue — Can an action to regain possession be combined with a claim for lease damages, or must two separate suits be filed? Which court has jurisdiction?
- Timing — How long does it typically take to regain possession through the courts?
- Damages — What damages can a commercial landlord recover through litigation, and is there a duty to mitigate?

Although statutory interpretation and case law relating to these issues is constantly evolving and counsel should be consulted for a complete evaluation of the circumstances relating to any specific landlord-tenant matter, this handbook provides a practical starting point for commercial landlords evaluating their options on a given default.

Landlord-Friendly / Tenant-Friendly / Neutral Classification

Each chapter is labeled Landlord-Friendly, Tenant-Friendly, or Neutral, based on an overall assessment of that state's statutory notice burden, availability of self-help, procedural speed, and damages rules as they affect a commercial landlord pursuing possession. This classification is a general orientation tool, not a prediction of the outcome of any specific case, and it does not account for lease-specific drafting that can shift the practical balance in either direction.

Landlord-Friendly chapters are marked in **green**, Tenant-Friendly chapters are marked in **red**, and Neutral chapters are marked in **gray**.

CHAPTER 01

Alabama

LANDLORD-FRIENDLY

Statutory Notice

A landlord must give a tenant who defaults on any lease term a ten-day statutory notice to quit before commencing an unlawful detainer action. Ala. Code § 35-9-6.

Self-Help / Commercial Lockout

Self-help remedies (lockouts, seizure of premises without judicial process) remain unavailable in Alabama. Ala. Code § 6-6-317.

Jurisdiction and Venue

District and circuit courts have jurisdiction over eviction actions according to their respective statutory jurisdictional amounts, and venue lies in the county where the leased property is located. Ala. Code § 35-9A-461(b). District courts retain a \$20,000 damages jurisdictional limit, Ala. Code § 12-11-30(1), so a commercial landlord seeking damages beyond that amount must pursue a separate or supplemental claim in circuit court (including on appeal).

Timing

After the notice period expires, the landlord serves a summons and complaint. Ala. Code § 35-9-6. A tenant has 14 days to respond for nonpayment of rent and 7 days to respond for other grounds; the tenant then has 7 days to appeal an adverse ruling, after which the landlord may obtain a writ of possession. Ala. Code § 35-9A-461(d). Eviction actions receive scheduling precedence over other civil cases, and on appeal to circuit court the case is set for trial within 60 days of the appeal filing. Ala. Code § 6-6-350.

Damages

Eviction and repossession generally terminate the lease and the landlord's right to post-eviction rent, but the parties may contract to hold the tenant liable for rent accruing after eviction, and Alabama courts enforce express acceleration clauses. Landlords have no statutory duty to mitigate damages. A tenant who unlawfully holds over after lease expiration may be liable for double rent. Ala. Code § 6-6-314.

Special Considerations

An appeal from a district court eviction judgment must be filed within seven days and is entitled to preferred trial scheduling in circuit court, but a tenant's appeal does not stay the writ of possession unless the tenant pays into court all rent due under the lease and continues paying rent as it accrues during the appeal. Ala. Code §§ 6-6-350, 35-9A-461(d).

Key Commercial Lease Drafting Considerations

- Express acceleration-of-rent clause, since Alabama will not imply one.
- Express post-eviction/post-repossession rent liability language, since termination otherwise cuts off future rent.
- No reliance on self-help; build in judicial-process timelines for default scenarios.
- Contractual notice/cure periods tailored to the tenant's typical default patterns (statute sets only a 10-day floor).
- Anticipate a bifurcated forum: possession in district court capped at \$20,000, larger damages claims in circuit court.
- Double-rent holdover language to reinforce the statutory holdover remedy.
- Attorney's fees provision, since fee-shifting is not automatic.
- Appeal-bond/rent-deposit mechanics to preserve possession pending a tenant's appeal.

Source Notes. *Statutory authorities reviewed: Ala. Code §§ 35-9-6, 35-9A-461(b), (d), 12-11-30(1), 6-6-317, 6-6-314, 6-6-350. No material 2023–2026 amendments to these commercial eviction provisions were identified; citations and substance were confirmed against current Alabama Code text. ---*

CHAPTER 02

Alaska

NEUTRAL

Statutory Notice

A landlord must give the tenant written notice to quit before commencing an action to recover possession. Alaska Stat. § 34.03.220(b). For nonpayment of rent, the landlord may proceed after 7 days' notice; for non-monetary lease violations, a 10-day notice is required. Alaska Stat. §§ 34.03.220(b), 09.45.090(b)(2)(A). Notice may be delivered personally, left at the premises, or sent by registered or certified mail, and 3 days are added to the notice period when service is by mail. Alaska Stat. §§ 09.45.100, 09.45.090(c).

Self-Help / Commercial Lockout

Where the lease so provides, a landlord may re-enter for nonpayment of rent, but any self-help re-entry must be peaceable. Alaska Stat. §§ 09.45.690, 09.45.060. A landlord may not seize a tenant's property to satisfy rent. Alaska Stat. § 34.03.250.

Jurisdiction and Venue

Possession is recovered through an unlawful detainer action. Alaska Stat. § 09.45.070. District court has jurisdiction where arrears and property damage do not exceed \$100,000; larger claims proceed in superior court. Alaska Stat. §§ 22.15.030(a)(6), (b), 22.10.020.

Timing

A possession hearing is typically set within about two weeks of filing; damages claims proceed in the ordinary course of litigation and do not receive priority docketing.

Damages

Acceleration-of-rent clauses are enforceable where expressly provided; absent such a clause, a landlord should mitigate by seeking a replacement tenant. A tenant who pays all arrears, interest, and costs before judgment and cures other lease breaches may be entitled to continue in possession unless the lease provides otherwise. Alaska Stat. § 09.45.690.

Key Commercial Lease Drafting Considerations

- Express, unambiguous re-entry/self-help clause if the landlord wants to preserve that remedy — it is contract-dependent, not automatic.
- Reinforce that any self-help must remain peaceable to avoid tort exposure.
- Express acceleration clause, since none is implied.
- Mitigation language allocating responsibility for reletting efforts.
- Address the statutory reinstatement right (payment of arrears cures default) if the landlord wants to limit or condition it contractually.
- Specify notice delivery method in the lease to avoid the statutory 3-day mail extension where speed matters.
- Distinguish monetary (7-day) vs. non-monetary (10-day) default notice triggers in default provisions.
- Anticipate venue/forum depending on claim size (\$100,000 threshold between district and superior court).

Source Notes. *Statutory authorities reviewed: Alaska Stat. §§ 34.03.220(b), 34.03.250, 09.45.060, 09.45.070, 09.45.090(b)(2)(A), (c), 09.45.100, 09.45.690, 22.10.020, 22.15.030(a)(6), (b). No material 2023–2026 legislative amendments specific to commercial forcible entry and detainer or the Alaska Landlord and Tenant Act's commercial provisions were identified in current searches. ---*

CHAPTER 03

Arizona

LANDLORD-FRIENDLY

Statutory Notice

A landlord must give a written demand to quit and wait five days before pursuing self-help or a forcible detainer action. Ariz. Rev. Stat. § 12-1173(2).

Self-Help / Commercial Lockout

Arizona continues to permit commercial self-help. Where a tenant fails to pay rent for five days, the landlord may re-enter and take possession without further formal demand. Ariz. Rev. Stat. § 33-361(A). If rent remains unpaid, the landlord also holds a statutory lien and may seize as much of the tenant's on-premises personal property as necessary to secure the rent, subject to procedural requirements (notice periods and, ultimately, a public sale) and the exclusion of property belonging to third parties or otherwise exempt by law. Ariz. Rev. Stat. § 33-361(D); see also Ariz. Rev. Stat. § 33-1023 (sale procedure). Separately, a landlord may pursue prejudgment attachment of a tenant's assets for lease breaches under Ariz. Rev. Stat. § 12-2401 et seq.

Jurisdiction and Venue

The court in a forcible detainer action may determine possession and simultaneously assess damages, attorney's fees, and costs, or the landlord may bring a separate action for unpaid rent and damages. Ariz. Rev. Stat. § 33-361(B). Justice courts have concurrent jurisdiction with superior court for amounts of \$10,000 or less, Ariz. Rev. Stat. § 22-201(C), while superior court has jurisdiction over forcible entry and detainer actions regardless of amount. Ariz. Const. art. VI, § 14(5).

Timing

A forcible entry and detainer action must be tried not less than five nor more than thirty days after commencement. Ariz. Rev. Stat. § 33-361. No writ of restitution issues until five days after judgment, but once issued it is enforced promptly. Ariz. Rev. Stat. § 12-1178(C).

Damages

Courts may award all charges due under the rental agreement plus damages, attorney's fees, and costs. An acceleration clause must be express to be enforceable, and landlords have no duty to mitigate. Ariz. Rev. Stat. § 33-361(D).

Special Considerations

Any party may appeal within five days of judgment, but must pay into court the rent due and continue paying rent as it accrues during the appeal. Ariz. Rev. Stat. § 12-1179(A), (D). Separately, effective 2026, S.B. 1426 amended Ariz. Rev. Stat. §§ 12-1171 and 12-1173 to create an expedited forcible detainer track for removing unauthorized occupants ("squatters") who never had a landlord-tenant relationship; the bill expressly does not alter existing landlord-tenant rights and remedies and does not apply to current or former tenants, so it has no effect on standard commercial lease enforcement.

Key Commercial Lease Drafting Considerations

- Express lockout/self-help procedures consistent with § 33-361(A) to preserve the landlord's non-judicial remedy.
- Landlord's lien and property-seizure mechanics referenced or clarified in the default section.
- Express acceleration clause, since none is implied.
- No mitigation obligation by default — consider whether to impose one contractually.
- Attorney's fees and costs provision to support fee recovery alongside possession.
- Consider whether to reserve the right to a separate damages action versus combining claims in the forcible detainer proceeding.
- Appeal bond/rent-deposit provisions consistent with the five-day appeal window.
- Confirm tenant status is unambiguous in the lease, since squatter-focused expedited procedures under S.B. 1426 are unavailable against actual tenants.

Source Notes. Statutory authorities reviewed: Ariz. Rev. Stat. §§ 12-1173(2), 12-1178(C), 12-1179(A), (D), 12-2401 et seq., 22-201(C), 33-361(A), (B), (D), 33-1023; Ariz. Const. art. VI, § 14(5); S.B. 1426 (2026), amending Ariz. Rev. Stat. §§ 12-1171, 12-1173, effective 2026 (expedited unauthorized-occupant procedure; does not alter landlord-tenant remedies). ---

CHAPTER 04

Arkansas

LANDLORD-FRIENDLY

Statutory Notice

A landlord must give the tenant a ten-day notice to quit. Ark. Code Ann. § 18-16-101(b)(1).

Self-Help / Commercial Lockout

Self-help is not available in Arkansas. Ark. Code Ann. § 18-60-302.

Jurisdiction and Venue

A landlord may seek both possession and damages in the same unlawful detainer proceeding, filed in circuit court in the county where the property is located. Ark. Code Ann. § 18-60-306.

Timing

If the tenant does not file a written objection to the claim for possession within five days after service of the complaint, the clerk must immediately issue a writ of possession without delay. Ark. Code Ann. § 18-60-307(b).

Damages

Upon judgment for the landlord, the court assesses rent due through judgment, and if the tenant remains in possession more than 24 hours after service of a writ of possession, the court may order the tenant's possessions applied to satisfy any money judgment. Ark. Code Ann. § 18-60-310(c)(1), (3). Where the property is used for commercial (or mixed residential/commercial) purposes, the landlord is entitled to liquidated damages of three times the monthly rental value for the period of unlawful detention. Ark. Code Ann. § 18-60-309(b)(2). Arkansas imposes no express statutory duty to mitigate.

Special Considerations

If the lease provides for acceleration of rent or termination of possession without termination of the lease itself, the landlord may pursue rent through the end of the lease term following eviction.

Key Commercial Lease Drafting Considerations

- Express acceleration clause and/or "termination of possession without termination of lease" language to preserve post-eviction rent claims.
- No statutory mitigation duty — consider whether to impose one, since courts may otherwise decline to require it.
- Combined possession-and-damages pleading is available in a single circuit court action — align lease remedies provisions accordingly.
- Contractual notice periods, since the ten-day statutory notice is a floor that parties may lengthen (but should not shorten below the statute).
- Reinforce the triple-rent commercial holdover remedy in default/holdover provisions to make tenants aware of the enhanced exposure.
- Attorney's fees provision, since fee-shifting is not automatic under these sections.
- Provisions addressing disposition of tenant property left behind after a writ of possession is executed.

Source Notes. *Statutory authorities reviewed: Ark. Code Ann. §§ 18-16-101(b)(1), 18-60-302, 18-60-306, 18-60-307(b), 18-60-309(a), (b)(2), 18-60-310(c)(1), (3). No material 2023–2026 amendments to Arkansas's unlawful detainer statutes affecting commercial tenancies were identified. ---*

CHAPTER 05

California

NEUTRAL

Self-help remains categorically unavailable, but the 2026 procedural amendments meaningfully shorten the timeline for landlords facing dilatory motion practice, offsetting some of the friction of the unlawful detainer process.

Statutory Notice

Commercial notice requirements depend upon the basis for termination and the provisions of the lease. Before initiating an unlawful detainer action, landlords should verify the applicable commercial notice provisions, cure rights, and lease-specific requirements governing the default at issue. Current notice analysis should always be reviewed in conjunction with California's unlawful detainer statutes and the lease language.

Self-Help / Commercial Lockout

Self-help is not an available commercial eviction remedy in California. Commercial landlords generally must recover possession through unlawful detainer proceedings rather than lockout or other unilateral exclusion methods.

Jurisdiction and Venue

Commercial possession disputes are generally resolved through unlawful detainer proceedings in superior court. Because the scope of relief available in an unlawful detainer action is narrower than in general civil litigation, landlords should separately evaluate possession claims and broader lease-damage claims. Depending on the circumstances, additional lease-damage claims may require separate litigation.

Timing

California continues to provide expedited unlawful detainer procedures. Effective January 1, 2026, Assembly Bill 1384 amended Code of Civil Procedure § 1170. In a commercial unlawful detainer action, when a defendant files a demurrer or motion to strike, the hearing generally must occur between five and seven court days after filing. In commercial tenancy cases, any continuance granted for good cause may not exceed ten court days after the first hearing date established by the court. These amendments were enacted to reduce delays in commercial unlawful detainer proceedings.

Damages

California Civil Code § 1951.2 governs damages following termination of a lease due to tenant breach. Upon termination, a landlord may recover unpaid rent earned before termination; rent damages accruing through the time of award; future-rent damages where authorized by the lease and statute; and other detriment proximately caused by the tenant's breach. Future-rent recovery remains subject to the requirements of Civil Code § 1951.2(c), and mitigation principles continue to apply. A landlord's efforts to mitigate damages do not waive the right to recover damages authorized by § 1951.2.

Mitigation

California continues to reduce recoverable post-termination and future-rent damages by rental losses that could reasonably have been avoided. The statutory framework expressly contemplates mitigation while preserving the landlord's damages claims.

2026 Update Note

Effective January 1, 2026, AB 1384 amended California Code of Civil Procedure § 1170 and imposed stricter timing requirements for hearings on demurrers and motions to strike in commercial unlawful detainer proceedings. Commercial landlords should evaluate pleading strategy and motion practice with these expedited hearing requirements in mind.

Key Commercial Lease Drafting Considerations

- Express future-rent damages provision.
- Acceleration clause complying with Civil Code § 1951.2.
- Attorney's fees provision.
- Detailed default and cure provisions.
- Reservation of remedies following reentry.
- Non-waiver language for acceptance of payments.
- Clarification of mitigation and reletting rights.
- Post-termination damage provisions.

Source Notes. *Statutory authorities reviewed: California Code of Civil Procedure § 1170 as amended by Assembly Bill 1384, Chapter 299, Statutes of 2025, effective January 1, 2026; California Civil Code § 1951.2.*

CHAPTER 06

Colorado

NEUTRAL

Statutory Notice

Colorado requires at least three days' written notice after a tenant's default before an eviction action may proceed; a lease may require earlier notice but may not waive the three-day minimum. Colo. Rev. Stat. § 13-40-104 (unlawful detention; formerly cited by some sources as Title 12, now codified in Title 13's Forcible Entry and Detainer article).

Self-Help / Commercial Lockout

Colorado prohibits self-help exclusion or removal of a tenant except by mutual consent or where the unit has been abandoned. Colo. Rev. Stat. § 38-12-510.

Jurisdiction and Venue

Possession actions may be filed in county or district court in the county where the property is located; claims involving monthly rent exceeding \$25,000 must be certified to district court, and county courts otherwise have jurisdiction over rent/damages claims and counterclaims up to \$25,000 (exclusive of costs and fees). Colo. Rev. Stat. § 13-40-109. Damages and possession claims must be filed separately.

Timing

If a tenant fails to comply with a written demand for compliance or possession, the court issues a summons for a hearing set between seven and fourteen days after issuance.

Damages

A landlord may recover the difference between the rent reserved under the lease and the reasonable rental value of the premises for the balance of the term, plus consequential damages, provided the landlord fulfills its duty to mitigate.

Special Considerations

Colorado enacted significant tenant-protection legislation in 2024–2026 — including H.B. 24-1098 (requiring "cause" for eviction of a residential tenant, effective April 19, 2024) and H.B. 25-1168 (housing protections and rent-repayment-plan requirements for victim-

survivors of domestic violence and related abuse, effective August 6, 2025) — but both measures are expressly limited to residential tenancies and dwelling units and do not alter the commercial forcible entry and detainer framework described above.

Key Commercial Lease Drafting Considerations

- Contractual notice periods may exceed but not shorten the three-day statutory minimum.
- No self-help — build default enforcement around judicial process and abandonment/mutual-consent exceptions.
- Express mitigation-of-damages language, since Colorado imposes a duty to mitigate as a matter of law.
- Plan for separately filed possession and damages actions, and address venue if monthly rent may exceed \$25,000.
- Liquidated/acceleration damages provisions tied to the "loss of bargain" measure (contract rent less reasonable rental value) to reduce proof burdens at trial.
- Attorney's fees and cost-shifting provisions, since none is implied.
- Confirm the tenancy is genuinely commercial in the lease recitals, since recent residential-only reforms (just-cause eviction, victim-survivor protections) create risk if a mixed-use classification is contested.

Source Notes. Statutory authorities reviewed: Colo. Rev. Stat. §§ 13-40-104, 13-40-109, 38-12-510; H.B. 24-1098 (2024), effective April 19, 2024 (residential just-cause eviction; does not apply to commercial tenancies); H.B. 25-1168 (2025), effective August 6, 2025 (residential victim-survivor housing protections; does not apply to commercial tenancies). ---

CHAPTER 07

Connecticut

NEUTRAL

Statutory Notice

Where a commercial tenant defaults on rent or breaches the lease, the landlord must give three days' notice to quit before terminating the rental agreement or the time specified for the tenant to quit possession. Conn. Gen. Stat. § 47a-23. If the tenant remains after the notice period, a court commissioner may issue a writ, summons, and complaint. Conn. Gen. Stat. § 47a-23a. If the tenant's whereabouts are unknown, notice by publication (at least twice, at least ten days before the quit date) suffices. Conn. Gen. Stat. § 47a-23b. Connecticut also maintains a separate provision specifically addressing eviction of tenants and occupants from commercial property and disposition of property left behind. Conn. Gen. Stat. § 47a-42a.

Self-Help / Commercial Lockout

Self-help methods such as lockouts remain unavailable to Connecticut commercial landlords. Connecticut's entry and detainer statute makes it unlawful for a landlord to retake possession from a tenant holding over by force or a breach of the peace, and a landlord has no right to regain possession from a tenant by self-help even where the tenant is unlawfully holding over. Conn. Gen. Stat. § 47a-43 (Chapter 833, Entry and Detainer).

Jurisdiction and Venue

Summary process actions must be brought in the geographical judicial district where the premises are located, or, for a corporate defendant, where it maintains an office or place of business; if the defendant is a nonresident, venue lies where the plaintiff resides or where the land lies, at the plaintiff's election. Conn. Gen. Stat. § 47a-23a.

Timing

If the tenant has not vacated by the date specified in the notice to quit, the landlord may have a summons and complaint served. The defendant has two days after the return date to appear; absent an appearance by the third day after the return date, the landlord may move for default judgment.

Damages

A landlord who terminates a commercial tenancy following the tenant's breach has a duty to mitigate and cannot also recover rent due under the full lease term; but a landlord who declines to accept surrender and instead sues for rent as it comes due (without terminating the tenancy) has no duty to mitigate.

Special Considerations

Connecticut adopted eviction-record-sealing legislation in 2024 (limiting public access to certain dismissed/withdrawn/tenant-prevailing eviction case records) and expanded "just cause"/good-cause protections for specified residential tenant categories effective October 1, 2024; both measures are residential-focused and do not extend good-cause eviction protections to commercial tenancies. A broader residential "just cause" bill (S.B. 143, 2024) was not enacted.

Key Commercial Lease Drafting Considerations

- Express notice-and-cure provisions, since the statutory three-day quit notice is a floor.
- No self-help — rely on judicial summary process for all removals.
- Mitigation-of-damages strategy: consider a "no-termination, sue-as-rent-comes-due" remedies clause to preserve full lease-term rent recovery without a mitigation duty, alongside a standard termination-and-relet remedy.
- Venue provisions consistent with the judicial-district rules, particularly for out-of-state corporate or nonresident tenants.
- Attorney's fees provision, since fee-shifting is not automatic.
- Address disposition of tenant property left on commercial premises post-eviction, referencing § 47a-42a.
- Default/appearance timeline awareness (two-day appearance window) when drafting notice/cure mechanics that anticipate litigation speed.

Source Notes. *Statutory authorities reviewed: Conn. Gen. Stat. §§ 47a-23, 47a-23a, 47a-23b, 47a-42a, Chapter 832 generally. 2024 Connecticut legislation on eviction-record sealing and expanded good-cause protections for certain residential tenant categories (effective October 1, 2024) reviewed and confirmed inapplicable to commercial tenancies; S.B. 143 (2024 broader just-cause bill) was not enacted. ---*

CHAPTER 08

Delaware

NEUTRAL

Statutory Notice

Commercial rental units are expressly excluded from Delaware's Residential Landlord-Tenant Code; all rights, remedies, and obligations under a commercial rental agreement are governed by general contract principles, and only Chapter 57 (Summary Possession) and Part IV of Title 25 apply to commercial rental agreements. Del. Code Ann. tit. 25, § 5101(b). A summary possession action may proceed on grounds including those set by the commercial rental agreement itself. Del. Code Ann. tit. 25, § 5702(10). Notice of the summary possession complaint must be served at least five days and not more than thirty days before the hearing. Del. Code Ann. tit. 25, § 5705.

Self-Help / Commercial Lockout

Delaware does not recognize self-help as an available commercial eviction remedy; recovery of possession from a commercial tenant must proceed through the Chapter 57 summary possession action.

Jurisdiction and Venue

Summary possession actions are heard by the Justice of the Peace Court in the county where the premises are located. Del. Code Ann. tit. 25, § 5701.

Timing

The action commences by filing a complaint for possession; hearing timing follows the notice window in § 5705 and is otherwise court-dependent. Del. Code Ann. tit. 25, § 5704.

Damages

Upon judgment for the landlord, the court awards costs to the prevailing party, and for claims based on forcible entry or forcible holding out, the court may award a fixed sum as damages in addition to costs. Del. Code Ann. tit. 25, § 5711. An acceleration clause must be expressly stated to be enforceable, and because commercial tenancies are governed by contract principles, the lease itself must specify whether the landlord may collect rent as contract damages after eviction. Delaware law imposes a duty to mitigate damages.

Special Considerations

Because commercial tenancies sit outside the Residential Landlord-Tenant Code, drafters cannot rely on Code default rules to fill lease gaps — the written lease effectively is the governing law on notice, cure, damages, and remedies, subject only to the Chapter 57 court procedure.

Key Commercial Lease Drafting Considerations

- Comprehensive, self-contained default/notice/cure provisions — Delaware's contract-principles approach means gaps are not filled by residential-code protections.
- Express acceleration-of-rent and post-eviction damages clauses, since none is implied.
- Mitigation language, since Delaware imposes a duty to mitigate as a matter of law.
- No self-help remedy — build enforcement around the Chapter 57 Justice of the Peace Court process.
- Attorney's fees and cost-shifting provisions.
- Confirm the "commercial rental unit" characterization is unambiguous in the lease to avoid inadvertent application of residential-code provisions.
- Notice timing consistent with the 5–30 day window under § 5705 for any summary possession filing.

Source Notes. *Statutory authorities reviewed: Del. Code Ann. tit. 25, §§ 5101(b), 5701, 5702(10), 5704, 5705, 5711. Delaware's 2024 residential eviction diversion program (§ 5702A, mandatory mediation for residential filings on/after July 1, 2024) was reviewed and confirmed to apply only to residential summary possession filings, not commercial. ---*

CHAPTER 09

District of Columbia

TENANT-FRIENDLY

Statutory Notice

A commercial month-to-month or quarter-to-quarter tenancy may be terminated by 30 days' written notice from the landlord to the tenant to quit (by contrast, only the tenant — not the landlord — may unilaterally terminate a residential month-to-month tenancy under this section), with the notice period expiring on the first day of the first month at least 30 days after the date of the notice. D.C. Code § 42-3202. The parties may agree to a longer or shorter notice period, or waive the notice requirement, in the lease. D.C. Code § 42-3208.

Self-Help / Commercial Lockout

Self-help is not available in the District of Columbia.

Jurisdiction and Venue

An action for possession may be filed in the Superior Court of the District of Columbia, and the landlord may seek rent in arrears together with possession, or file separate suits for possession and damages, which may be consolidated.

Timing

Timing is variable and case-dependent; there is no fixed statutory hearing window generally applicable to commercial possession actions.

Damages

Eviction generally terminates the lease and the tenant's ongoing rent obligation, so statutory provisions typically speak to rent in arrears rather than future rent; however, case law permits a landlord to seek damages for loss of rent measured by the lease terms in appropriate circumstances.

2026 Update Note

Effective December 31, 2025, the Rebalancing Expectations for Neighbors, Tenants, and Landlords (RENTAL) Amendment Act of 2025, D.C. Law 26-80, made substantial changes to D.C.'s eviction framework — including expedited proceedings for dangerous-crime cases,

a reduced pre-filing notice period (from 30 to 10 days) for residential nonpayment cases, and new ERAP-stay procedures under D.C. Code § 42-3505.01(r). These changes are limited to residential rental housing (rental units, housing accommodations, dwelling units) under the Rental Housing Act framework and do not apply to commercial tenancies, which continue to be governed by D.C. Code § 42-3202 and related general landlord-tenant provisions described above.

Key Commercial Lease Drafting Considerations

- Express notice-period provisions, since the 30-day default notice may be shortened, lengthened, or waived by agreement.
- No self-help — enforcement must proceed through Superior Court.
- Decide whether to combine possession and damages claims or reserve damages for a separate (potentially consolidated) suit.
- Express post-eviction/future-rent damages clause, since termination otherwise cuts off the landlord's rent claim absent contractual or case-law support.
- Attorney's fees provision, since fee-shifting is not automatic.
- Confirm the lease is unambiguously commercial, since the RENTAL Act's 2025 reforms materially tightened residential eviction timing and protections — misclassification risk has increased.
- Build in realistic timing expectations, since commercial possession timing in D.C. remains variable and court-dependent.

Source Notes. *Statutory authorities reviewed: D.C. Code §§ 42-3202, 42-3208, 42-3505.01(r); RENTAL Amendment Act of 2025, D.C. Law 26-80, effective December 31, 2025 (residential-only reforms). ---*

CHAPTER 10

Florida

NEUTRAL

Statutory Notice

A landlord must give three days' written notice requiring payment of rent or possession for a monetary default. Fla. Stat. § 83.20(2). For a non-monetary material breach (where the lease is silent or the tenancy is oral), the landlord must give 15 days' written notice to cure or vacate. Fla. Stat. § 83.20(3). Both the statutory cure periods and notice requirements may be waived by agreement.

Self-Help / Commercial Lockout

Self-help is not permitted in Florida; a landlord may obtain possession only through an action at law. Fla. Stat. §§ 83.05, 83.21.

Jurisdiction and Venue

A complaint to remove a commercial tenant is filed in the court of the county where the premises are situated. Fla. Stat. § 83.21.

Timing

A landlord must serve a summons and complaint at least five days before a judgment for final removal is entered. Fla. Stat. § 83.22. Timing thereafter is variable depending on whether the matter is contested; in a contested nonpayment case, the tenant must deposit the accrued rent into the court registry or move the court to determine the amount to be deposited as a condition of contesting.

Damages

A landlord may combine a claim for money damages with a possession claim if pleaded "expressly and specifically," and may also recover attorney's fees and costs. Fla. Stat. §§ 83.231, 83.251. A tenant who refuses to deliver possession after lease expiration may be liable for double rent for the holdover period, plus interest. Fla. Stat. § 83.06. Florida landlords have a duty to mitigate damages, and Florida courts enforce express rent-acceleration clauses.

Key Commercial Lease Drafting Considerations

- Express acceleration clause, since Florida courts require one to enforce accelerated rent.
- Mitigation-of-damages allocation, since Florida imposes a mitigation duty as a matter of law.
- Combine possession and damages claims expressly in remedies language to preserve the option under §§ 83.231/83.251.
- Attorney's fees provision to support fee recovery alongside a Chapter 83, Part I action.
- Double-rent holdover clause reinforcing the statutory § 83.06 remedy.
- Consider whether to shorten/lengthen the statutory 3-day/15-day notice-and-cure periods, since both are waivable and frequently negotiated.
- Anticipate the rent-deposit/court-registry requirement in contested nonpayment cases when drafting rent-payment and default-dispute provisions.

Source Notes. *Statutory authorities reviewed: Fla. Stat. §§ 83.05, 83.06, 83.20(2), (3), 83.21, 83.22, 83.231, 83.251 (Chapter 83, Part I — Nonresidential Tenancies). Current statutory text and section numbering were confirmed against the 2025 Florida Statutes; no material change to the substance of the commercial notice, self-help, jurisdiction, timing, or damages provisions was identified for 2023–2026, notwithstanding routine non-substantive chapter-law citations appearing in the statutes' amendment history.*

CHAPTER 11

Georgia

LANDLORD-FRIENDLY

Statutory Notice

Georgia imposes no default statutory pre-suit notice requirement for a commercial dispossessory action; notice obligations exist only to the extent the lease itself requires them. A dispossessory affidavit/demand for possession under O.C.G.A. § 44-7-50 effectively doubles as the landlord's demand and the trigger for the summary proceeding — the landlord may demand possession and, if the tenant refuses to vacate or pay, immediately file. Where the lease is silent, no separate advance notice to vacate or to cure is statutorily mandated before filing.

Self-Help / Commercial Lockout

Georgia law does not categorically prohibit self-help for commercial tenancies, but it is not available as a default remedy either — a landlord may lawfully change locks or otherwise exclude a defaulting commercial tenant only where the lease expressly authorizes self-help and the exclusion can be accomplished without a breach of the peace. Georgia courts have not clearly defined "breach of the peace" in this context, which creates real exposure even where the lease authorizes the remedy, and most commercial landlords and their counsel favor the judicial dispossessory process specifically because a completed dispossessory judgment forecloses later wrongful-eviction and trespass claims.

Jurisdiction and Venue

The landlord may combine a claim for possession with a claim for rent and other damages in the same dispossessory proceeding, filed in the magistrate, state, or civil court (as applicable) of the county where the property is located. O.C.G.A. §§ 44-7-49, 44-7-55(a).

Timing

After the dispossessory affidavit is filed and served, the tenant has seven days to answer (orally or in writing), with the deadline extended to the next non-weekend/non-holiday day if the seventh day falls on a Saturday, Sunday, or legal holiday. O.C.G.A. § 44-7-51. If the tenant fails to answer, the court will issue a writ of possession without a hearing; if the tenant answers, the matter proceeds to trial. Georgia law also affords a tenant a statutory

defense — full payment of rent owed plus dispossession costs within the seven-day answer period bars the eviction once in any twelve-month period — but the lease may expressly override this defense, and commercial leases commonly do. O.C.G.A. § 44-7-52. Once judgment issues, the writ of possession becomes executable after seven days, and the landlord must apply for execution within thirty days, directing the sheriff to remove the tenant and its property. O.C.G.A. §§ 44-7-53, 44-7-55.

Damages

Rent acceleration clauses are enforceable in Georgia commercial leases if expressly provided for, though a successful dispossession judgment ordinarily terminates the lease and the tenant's obligation for future rent unless the lease preserves that obligation. Georgia imposes no general statutory duty on a commercial landlord to mitigate damages following a tenant default.

Special Considerations

Georgia enacted the "Safe at Home Act" (H.B. 404) in 2024, adding a pre-filing cure notice and other tenant protections to O.C.G.A. Chapter 44-7 — but those provisions apply only to residential lease agreements entered into or renewed on or after July 1, 2024, and do not extend the cure-notice requirement to commercial tenancies. Commercial landlords and counsel should not assume the residential cure-notice reform changes the commercial dispossession timeline described above.

Key Commercial Lease Drafting Considerations

- Express, unambiguous self-help/re-entry provision if the parties intend to preserve that remedy, paired with a "no breach of the peace" limitation acknowledgment.
- Express waiver of the twelve-month statutory cure defense under O.C.G.A. § 44-7-52.
- Express contractual notice-and-cure periods, since none apply by default.
- Rent acceleration clause stated expressly, with survival-of-damages language after repossession.
- Express disclaimer of any duty to mitigate, to avoid ambiguity given the absence of a statutory mitigation duty.
- Attorney's fees provision (Georgia does not bar commercial fee-shifting clauses the way it restricts them in residential URLTA-style statutes elsewhere).
- Reservation of the right to seek both possession and damages in the same dispossession action.

Source Notes. *Statutory authorities reviewed: O.C.G.A. §§ 44-7-49, 44-7-50, 44-7-51, 44-7-52, 44-7-53, 44-7-55(a) (dispossession proceedings, Article 3); O.C.G.A. § 44-7-14 (tort liability of landlord, reviewed and found inapplicable to self-help authority); H.B. 404 ("Safe at Home Act"), effective July 1, 2024, reviewed and confirmed*

residential-only in application; 2024 Ga. Laws 484, amending O.C.G.A. § 44-7-55, reviewed and confirmed as addressing writ-of-possession/personal-property mechanics rather than the commercial notice or timing framework described above. ---

CHAPTER 12

Hawaii

LANDLORD-FRIENDLY

Statutory Notice

A landlord seeking to recover possession following termination or forfeiture of a commercial lease must give the tenant a written notice to quit of at least ten days before restoring possession. Haw. Rev. Stat. § 666-1. No 2023–2026 amendment to this notice period was identified.

Self-Help / Commercial Lockout

Self-help is not available by default, but Hawaii permits a landlord to exercise self-help to regain possession where the lease expressly grants that right. Outside an express lease grant, a landlord must use the summary possession process, and a wrongful, non-court-ordered exclusion overnight can expose the landlord to a statutory penalty of two months' rent (or two months' free occupancy) plus costs and attorney's fees.

Jurisdiction and Venue

An action for summary possession must be brought in the district court of the circuit where the premises are located, and a landlord may join claims for rent and damages with the possession claim. Haw. Rev. Stat. §§ 666-6, 666-7.

Timing

A commercial summary possession proceeding can resolve in as little as five to ten days after service if uncontested, but can extend to four to six weeks or longer where a trial is required.

Damages

A rent acceleration clause is enforceable only if expressly stated in the lease. Hawaii imposes a duty on the landlord to mitigate damages, but the burden of proving a failure to mitigate rests on the tenant. *Marco Kona Warehouse v. Sharmilo, Inc.*, 7 Haw. App. 383, 768 P.2d 247 (1989). Rent a tenant continues to pay during the pendency of a successful eviction proceeding is treated as damages for wrongful withholding of the premises rather than as ordinary rent. Haw. Rev. Stat. § 666-5.

Special Considerations

Where a commercial tenant creates a statutory "nuisance," the landlord may serve a written twenty-four-hour notice to abate; if the tenant fails to comply, the landlord may then terminate the tenancy on five days' written notice following that second notice. Haw. Rev. Stat. § 666-3.

Key Commercial Lease Drafting Considerations

- Express self-help/re-entry authorization if the parties intend that remedy to be available.
- Express rent acceleration clause, since none is implied.
- Clear mitigation and reletting language, given the tenant-favorable burden-of-proof rule on mitigation.
- Provisions addressing treatment of rent accepted during a pending eviction action.
- Nuisance-cure procedures mirrored or modified from the twenty-four-hour/five-day statutory sequence if the parties want a different process.
- Attorney's fees and cost-shifting provisions, since these are not supplied by statute for commercial leases.

Source Notes. Statutory authorities reviewed: Haw. Rev. Stat. §§ 666-1, 666-3, 666-5, 666-6, 666-7 (Title 36, Chapter 666, Landlord and Tenant / Summary Possession); *Marco Kona Warehouse v. Sharmilo, Inc.*, 7 Haw. App. 383, 768 P.2d 247 (1989). No material 2023–2026 amendment to Chapter 666's commercial summary-possession provisions was located; 2026 legislative activity affecting Chapter 666 (e.g., H.B. 463's eviction-record disassociation provisions) is expressly limited to residential tenants and is not addressed here. ---

CHAPTER 13

Idaho

NEUTRAL

Statutory Notice

After a commercial tenant defaults, the landlord must give three days' written notice before proceeding with an unlawful detainer action. For nonpayment, the notice must state the amount due and demand payment or possession; for breach of other lease conditions, it must demand performance or possession. The notice must also inform a commercial tenant that, if the court enters judgment for the landlord, the tenant has seven days (or longer if the court grants an extension) to remove its belongings before the landlord may remove and dispose of them — longer than the seventy-two hours given to residential tenants. Idaho Code § 6-303.

Self-Help / Commercial Lockout

△ Sources diverge on this point. The 2022 baseline characterized Idaho as having no statute expressly forbidding self-help. Current secondary authority, including the Idaho Legal Services Authority and practitioner commentary, describes self-help eviction — changing locks, shutting off utilities, or removing a tenant's property outside the unlawful detainer process — as unlawful in Idaho for landlords generally, and Idaho's forcible entry statute independently penalizes retaking possession by force after a tenant is in possession. Commercial landlords should not rely on lease language purporting to authorize self-help without confirming current guidance with Idaho counsel, and should expect that only the judicial unlawful detainer process reliably avoids liability.

Jurisdiction and Venue

The landlord may combine an action for possession with a claim for damages, and the district court of the county where the property is located has jurisdiction. Idaho Code §§ 6-305, 6-311E.

Timing

After the complaint is filed, the court must schedule trial within twelve days of filing; the summons, complaint, and notice of trial setting must be served on the defendant at least five

days before trial. Idaho Code § 6-310. Following judgment, the commercial tenant has seven days (or a court-extended period) to remove belongings.

Damages

Idaho's treatment of accelerated-rent clauses remains unsettled: such clauses may be collected but are not treated as enforceable liquidated-damages provisions as such, and Idaho courts examine whether the future damages sought are disproportionate to actual damages. The landlord has a duty to mitigate damages.

Key Commercial Lease Drafting Considerations

- Do not rely on a lease self-help clause without current Idaho counsel confirmation given the unsettled/adverse secondary authority on self-help legality.
- Draft accelerated-rent provisions as a genuine pre-estimate of loss, anticipating a disproportionality challenge.
- Express mitigation/reletting procedures, since a duty to mitigate applies.
- Contractual notice periods longer than the three-day statutory minimum if the parties prefer more cure time.
- Personal-property removal and storage procedures consistent with the seven-day statutory removal window.
- Attorney's fees and cost provisions, since none are supplied by statute.

Source Notes. *Statutory authorities reviewed: Idaho Code §§ 6-303, 6-305, 6-310, 6-311E (Title 6, Chapter 3, Forcible Entry and Unlawful Detainer). No 2023–2026 legislative amendment to these commercial provisions was identified in this research. ---*

CHAPTER 14

Illinois

TENANT-FRIENDLY

Statutory Notice

Before filing, an Illinois landlord must make a formal demand for payment of past-due rent (or cure of the default at issue) under the state's Eviction Article (formerly styled "Forcible Entry and Detainer," renamed by P.A. 100-173). 735 Ill. Comp. Stat. 5/9-209. The landlord must give at least five days' written notice before acting on nonpayment of rent, and at least ten days' notice for all other grounds. The nonpayment notice must include statutorily prescribed language that only full payment of the amount demanded waives the landlord's termination right, unless the landlord agrees in writing to accept partial payment and continue the lease. 735 Ill. Comp. Stat. 5/9-209.

Self-Help / Commercial Lockout

Self-help is not available in Illinois; the Eviction Article, 735 Ill. Comp. Stat. 5/9-101 et seq., provides the exclusive judicial procedure for regaining possession, and it applies to commercial as well as residential tenancies.

Jurisdiction and Venue

The eviction action must be filed in the circuit court of the county where the property is located, and the landlord may join a claim for rent with the claim for possession. 735 Ill. Comp. Stat. 5/9-209.

Timing

Timing varies materially by circuit/county docket; resolution typically takes roughly three to four months.

Damages

Illinois imposes a statutory duty on the landlord to take reasonable measures to mitigate damages recoverable against a defaulting tenant. 735 Ill. Comp. Stat. 5/9-213.1.

Special Considerations

A landlord should be cautious about accepting partial rent payment, since doing so (outside the statutory safe harbor described above) can be construed as an unintentional waiver of the default and may preclude eviction on that notice. Similarly, accepting keys back from a tenant before a court has entered an eviction order can be construed as a voluntary surrender of the lease and may jeopardize the landlord's ability to collect future rent.

Key Commercial Lease Drafting Considerations

- Express non-waiver language addressing partial-payment acceptance, tracking but reinforcing the statutory safe harbor.
- Express procedures preventing return of keys/possession from being construed as surrender before judgment.
- Mitigation and reletting provisions consistent with the statutory duty to mitigate.
- Realistic timeline expectations (three to four months) built into any default remedies or guaranty triggers.
- Attorney's fees and cost-shifting provisions.
- Acceleration-of-rent language, since Illinois eviction law does not supply one by default.

Source Notes. Statutory authorities reviewed: 735 Ill. Comp. Stat. 5/9-209, 5/9-211, 5/9-213.1 (Code of Civil Procedure, Article IX, "Eviction," renamed from "Forcible Entry and Detainer" by P.A. 100-173, effective January 1, 2018). No material 2023–2026 amendment specific to the commercial notice, self-help, or mitigation provisions discussed above was identified; a 2025 amendment barring minors from being named as eviction defendants was reviewed and is not commercially significant. ---

CHAPTER 15

Indiana

TENANT-FRIENDLY

Statutory Notice

The parties may contractually waive statutory notice. Absent a waiver, a landlord terminating a tenancy and bringing an action for ejectment must give the tenant no less than ten days' notice. Ind. Code § 32-31-1-6. Notice is not required in several defined circumstances, including a fixed-term tenancy that has run its course, a tenancy at will where waste is committed, a tenancy at sufferance, or a lease requiring advance rent payment that the tenant fails to make. Ind. Code § 32-31-1-8.

Self-Help / Commercial Lockout

Indiana does not recognize a general or absolute right of landlord self-help; the more consistently supported basis for self-help is where the tenant has abandoned the premises, and commercial parties sometimes attempt to reserve a contractual self-help right, but Indiana courts and regulators generally treat non-judicial lockouts, utility shutoffs, and similar exclusionary conduct as improper outside abandonment, exposing a landlord who acts unilaterally to liability.

Jurisdiction and Venue

Indiana commercial possession actions are generally brought as ejectment/possession actions under Ind. Code art. 32-30, and in most counties proceed as a two-step process: an initial hearing (typically set two to three weeks after filing) determines only who is entitled to possession, with a separate, later hearing (often roughly two months out) to determine damages owed. After judgment, the landlord may pursue proceedings supplemental to collect.

Timing

Possession is generally determined in under a month; damages determinations often take three to four months, varying by county docket.

Damages

A rent acceleration clause is enforceable if expressly stated in the lease. As a general matter, eviction terminates the lease and future rent liability unless the lease preserves it. Where a tenant abandons the premises, the landlord has a duty to make reasonable efforts to relet and mitigate damages.

Key Commercial Lease Drafting Considerations

- Express notice-waiver language if the parties intend to bypass the ten-day statutory notice.
- Express, narrowly tailored self-help provision limited to abandonment scenarios, given the uncertainty around self-help outside that context.
- Express acceleration-of-rent and survival-of-damages provisions.
- Contractual timeline/damages-hearing coordination language, given the bifurcated possession/damages process.
- Mitigation and reletting cooperation provisions.
- Proceedings-supplemental/judgment-collection considerations built into guaranty or security provisions.

Source Notes. *Statutory authorities reviewed: Ind. Code §§ 32-31-1-6, 32-31-1-8 (notice); Ind. Code art. 32-30, ch. 3 (ejectment and recovery of possession of real estate). No 2023–2026 legislative amendment materially affecting these commercial provisions was identified. ---*

CHAPTER 16

Iowa

LANDLORD-FRIENDLY

Statutory Notice

Before a forcible entry and detainer action may be brought, the landlord must give the tenant three days' written notice to quit. Iowa Code § 648.3.

Self-Help / Commercial Lockout

△ No Iowa statute expressly authorizes or forbids commercial self-help, but current secondary guidance (including Iowa Legal Aid) treats non-judicial lockouts, utility shutoffs, or exclusion of a tenant without notice and a court process as improper, and describes such self-help as exposing a landlord to suit for damages and repossession. Commercial landlords should not assume a lease self-help clause is safely enforceable without confirming current treatment with Iowa counsel.

Jurisdiction and Venue

A forcible entry and detainer action must be brought in the county where the property is located. Iowa Code § 648.5. Forcible entry and detainer claims may not be joined with other claims except a claim for rent, and where a damages claim is joined it proceeds under a separate case number and timeline from the possession claim. Iowa Code § 648.19.

Timing

Once the petition is filed, the court must set the hearing no later than eight days after filing, or no later than fifteen days after filing with the plaintiff's consent. Iowa Code § 648.5.

Damages

There is no expedited statutory remedy to recover delinquent rent apart from the possession action. A rent acceleration clause is enforceable only if expressly stated in the lease. The landlord's duty to mitigate applies only where the tenant has abandoned the premises.

Key Commercial Lease Drafting Considerations

- Do not rely on an unqualified self-help clause without confirming current Iowa treatment; consider limiting any self-help right to post-abandonment scenarios.

- Express acceleration-of-rent clause, since none is implied.
- Coordinate any damages claim strategy with the separate case-number/timeline requirement for joined rent claims.
- Express mitigation obligations if the parties want mitigation to apply beyond the abandonment context.
- Contractual notice periods longer than three days if additional cure time is desired.
- Attorney's fees provisions, since none are supplied by statute.

Source Notes. *Statutory authorities reviewed: Iowa Code §§ 648.3, 648.5, 648.19 (Forcible Entry and Detainer, Title XV, Chapter 648). No 2023–2026 amendment materially affecting these commercial provisions was identified; a 2024 amendment to Iowa Code § 648.22 (H.F. 548, effective July 1, 2024) addressing court-record aggregation and reporting for forcible entry and detainer actions was reviewed and found to be procedural/record-keeping in nature rather than substantively affecting commercial notice, self-help, jurisdiction, timing, or damages. ---*

CHAPTER 17

Kansas

NEUTRAL

Statutory Notice

A Kansas landlord must give the tenant three days' notice to leave the premises for which possession is sought before filing an eviction lawsuit. Kan. Stat. Ann. § 61-3803. The three-day period is computed as three consecutive 24-hour periods beginning when the notice is delivered, posted, or mailed; if mailed, an additional two days is added; and Saturdays, Sundays, legal holidays, and days the clerk's office is closed do not count toward the period. Id.

Self-Help / Commercial Lockout

There is no right to use self-help in Kansas. Kan. Stat. Ann. § 61-3804.

Jurisdiction and Venue

A landlord may bring an action for rent due together with the possession action, or may pursue a separate rent action for the amount due. A judgment in the eviction action does not bar a subsequent lawsuit by either party for claims not included in that judgment. Kan. Stat. Ann. §§ 61-3802, 61-3804.

Timing

The defendant must appear on the date in the summons, which must be no less than three and no more than fourteen days after the summons issues. If trial is necessary, it must occur within fourteen days after the appearance date in the summons. Kan. Stat. Ann. §§ 61-3805, 61-3806, 61-3807.

Damages

Acceleration-of-rent clauses are likely enforceable in Kansas, though some case law cuts against enforceability. A landlord may seek rent due together with the possession claim. Kan. Stat. Ann. § 61-3804.

Key Commercial Lease Drafting Considerations

- Express rent acceleration clause, given the mixed case law on enforceability absent express lease language.
- No reliance on self-help; build default remedies around the judicial eviction timeline.
- Careful computation of the three-day notice period (24-hour blocks, mail add-on, and excluded days) built into any contractual notice mechanics.
- Consider whether to pursue rent and possession jointly or reserve the rent claim separately, given the non-bar rule for unincorporated claims.
- Attorney's fees provisions, since none are supplied by statute.
- Contractual notice periods longer than three days if desired.

Source Notes. *Statutory authorities reviewed: Kan. Stat. Ann. §§ 61-3802, 61-3803, 61-3804, 61-3805, 61-3806, 61-3807 (Chapter 61, Article 38, Evictions). No 2023–2026 amendment materially affecting these commercial provisions was identified. ---*

CHAPTER 18

Kentucky

LANDLORD-FRIENDLY

Statutory Notice

△ Correction to the 2022 baseline: the fixed seven-day (nonpayment) and fourteen-day (other breach) notice periods found in KRS § 383.660 are part of Kentucky's Uniform Residential Landlord and Tenant Act, KRS §§ 383.500–383.715, which by its terms governs only residential dwelling units and applies only in the specific counties and cities that have formally adopted it (e.g., Louisville-Jefferson County, Lexington-Fayette County, and a handful of others) — it does not govern commercial tenancies anywhere in the Commonwealth. For a commercial tenancy, notice to terminate for default or holdover is governed by the lease and Kentucky common law rather than a fixed statutory period; the forcible detainer action itself, applicable to commercial and residential tenancies alike, is defined and governed by KRS § 383.200 et seq.

Self-Help / Commercial Lockout

△ Correction to the 2022 baseline: the self-help prohibition of KRS § 383.655 is also a URLTA (residential-only) provision and does not, by its terms, bar self-help in a commercial tenancy. Secondary authority identifies Kentucky as among the states with no statute or reported decision squarely prohibiting commercial self-help, meaning a common-law self-help remedy may remain available where the lease reserves it — but Kentucky courts, like courts generally, tend to disfavor a landlord's use of self-help because it forces a tenant out before the tenant can litigate its right to remain in possession, so counsel should weigh this risk carefully even where no statute forecloses the remedy.

Jurisdiction and Venue

Forcible detainer actions are heard in Kentucky district court, with appeal to circuit court. KRS § 383.200 et seq.

Timing

After judgment, the tenant is ordered to vacate within seven days, and either party may appeal to circuit court within seven days of the judgment's entry. KRS §§ 383.240, 383.255.

Damages

△ Because the treble-holdover-damages remedy (KRS § 383.695), the attorney's-fee-clause prohibition (KRS § 383.570), and the related damages provisions cited in the 2022 baseline are also URLTA (residential-only) provisions, they do not apply to a commercial tenancy. Commercial rent acceleration, mitigation, and attorney's-fee-shifting are instead governed by the lease and Kentucky common contract-law principles; this research could not independently verify Kentucky-specific case law resolving the enforceability of a commercial acceleration clause against a penalty/liquidated-damages challenge or confirming the scope of any mitigation duty. Confirm current commercial-damages case law with Kentucky counsel before relying on a specific acceleration or mitigation position.

Special Considerations

Because the residential URLTA framework does not apply to commercial tenancies, a commercial lease is the primary — and often only — source of the parties' notice, cure, self-help, and damages rights in Kentucky; unlike many other states, there is little statutory backstop protecting a commercial tenant absent express lease terms.

Key Commercial Lease Drafting Considerations

- Express notice-and-cure provisions, since no fixed statutory notice period applies to commercial leases.
- Express, carefully limited self-help/re-entry clause if the parties want to preserve that remedy, paired with breach-of-the-peace and risk-allocation language.
- Express rent acceleration clause with a genuine pre-estimate-of-loss rationale, anticipating a possible penalty challenge.
- Express duty-to-mitigate (or disclaimer of mitigation) language, since the statutory mitigation duty does not extend to commercial tenancies.
- Express attorney's-fee-shifting clause, since the URLTA fee-clause prohibition does not apply to commercial leases.
- Contractual timeline coordination given the compressed seven-day post-judgment vacate and seven-day appeal windows.

Source Notes. *Statutory authorities reviewed: KRS §§ 383.200, 383.210, 383.240, 383.255 (Chapter 383, forcible entry and detainer, applicable to all tenancies); KRS §§ 383.500, 383.570, 383.655, 383.660, 383.695, 383.705 (Uniform Residential Landlord and Tenant Act, confirmed via multiple secondary sources — including Kentucky Legal Services Authority and University of Kentucky College of Law commentary — to apply only to residential dwelling units in adopting localities).* △ *Commercial-specific case law on acceleration-clause enforceability and mitigation could not be independently verified in this research; confirm with local counsel. ---*

CHAPTER 19

Louisiana

NEUTRAL

Statutory Notice

When a lessee's right of occupancy has ceased — whether by expiration of the lease term, action of the lessor, nonpayment of rent, or otherwise — and the lessor wishes to obtain possession, the lessor must deliver written notice to vacate, giving the lessee not less than five days from delivery to vacate. La. Code Civ. Proc. art. 4701. A lessee may waive this notice by written waiver in the lease, in which case the lessor may institute eviction proceedings immediately upon termination of the right of occupancy. *Id.*

Self-Help / Commercial Lockout

No self-help remedy is available in Louisiana. Commercial landlords must repossess leased premises only through a court order authorizing eviction, executed by a government official such as a representative of the local sheriff's office; the landlord may not carry out the dispossession itself.

Jurisdiction and Venue

The landlord must file separate actions for possession and for damages. The possession action must be filed in the parish court, city court, or justice of the peace court (as applicable) where the property is located. Effective August 1, 2024, La. Code Civ. Proc. art. 4844, as amended by Acts 2024, No. 129, gives parish and city courts jurisdiction concurrent with the district courts over eviction suits — including suits to evict occupants or tenants of leased commercial premises — without regard to the dollar amount of rent or the value of the right of occupancy involved, removing the jurisdictional dollar thresholds that previously constrained parish/city court jurisdiction in higher-rent commercial matters.

Timing

An eviction proceeding is typically completed within thirty to sixty days. The eviction hearing may not be held earlier than three days after service of the eviction suit, though the actual date depends on the court's docket.

Damages

A rent acceleration clause must be expressly provided for in the lease to be enforceable. A landlord may not continue collecting rent after the lease has been terminated.

Special Considerations

There is no right to a jury trial on eviction matters in Louisiana.

2026 Update Note

Effective August 1, 2024, Acts 2024, No. 129 amended and re-enacted La. Code Civ. Proc. art. 4844 to give parish and city courts jurisdiction concurrent with district courts over eviction proceedings — including commercial-lease and farmland evictions — regardless of the daily, monthly, or yearly rental amount or the annual value of the right of occupancy, eliminating the prior dollar-based jurisdictional caps for those courts in commercial matters.

Key Commercial Lease Drafting Considerations

- Express written waiver of the five-day notice-to-vacate requirement if immediate suit upon default is desired.
- Express rent acceleration clause, since none is implied by law.
- Post-termination rent-collection limitations built into any holdover or damages provisions, given the bar on continuing to collect rent after termination.
- Venue selection clause anticipating concurrent parish/city and district court jurisdiction post-2024 amendment.
- Provisions addressing the mandatory separate-action structure for possession versus damages claims.
- Jury-trial-waiver acknowledgment, consistent with the statutory bar on jury trials in eviction matters.

Source Notes. *Statutory authorities reviewed: La. Code Civ. Proc. arts. 4701, 4702, 4732 (notice to vacate, timing), and 4844 (jurisdiction); Acts 2024, No. 129, amending La. Code Civ. Proc. art. 4844, effective August 1, 2024.*

CHAPTER 20

Maine

LANDLORD-FRIENDLY

Statutory Notice

Maine's Forcible Entry and Detainer statute, 14 M.R.S. §§ 6001–6046, is divided into Subchapter 1 (Residential Landlords and Tenants, §§ 6000–6016-A) and Subchapter 2 (Commercial Leases, § 6017 et seq.). The seven-day pay-or-quit notice found at 14 M.R.S. § 6002 applies only to residential tenancies under Subchapter 1 — it does not govern commercial leases. Commercial tenancies are instead governed by 14 M.R.S. § 6017, which does not itself impose a statutory pre-filing notice period; notice requirements for a commercial default are therefore set by the lease and ordinary contract principles, not by a fixed statutory number of days. Practitioners relying on a "seven-day notice" for a Maine commercial matter are relying on the wrong subchapter.

Self-Help / Commercial Lockout

The self-help prohibition at 14 M.R.S. § 6014 likewise sits in Subchapter 1 and by its terms governs residential tenancies. No parallel statutory self-help ban applies expressly to commercial leases under Subchapter 2, and no Maine appellate authority was located squarely addressing self-help repossession of commercial premises. △ Could not independently verify the availability of self-help for Maine commercial landlords with confidence — commercial landlords should not assume self-help is available absent express lease authorization and should confirm current guidance with local counsel before attempting extrajudicial repossession.

Jurisdiction and Venue

The District Court has jurisdiction to hear, decide, and award rent and arrears allegedly owing in a commercial tenancy dispute, regardless of the amount in controversy. 14 M.R.S. § 6017.

Timing

Timing is variable and depends on the District Court's docket. Under § 6017, a tenant defending a commercial forcible entry and detainer action must appear on the return date and pay the agreed-upon rent, including all arrears, as a condition of maintaining the

defense; disputed amounts are determined by the court at hearing. If the tenant fails to pay rent to the court when due, the writ of possession issues immediately. Where judgment favors the landlord, the court may issue the writ of possession immediately — including during a Superior Court appeal — if the landlord posts a surety bond conditioned on paying damages and costs the tenant may suffer if the tenant ultimately prevails.

Damages

Maine's statutory landlord's-duty-to-mitigate provision, 14 M.R.S. § 6010-A, is likewise confined to Subchapter 1 residential tenancies. No parallel statutory mitigation duty applies to Maine commercial leases, consistent with the 2022 baseline's conclusion that a commercial landlord has no duty to mitigate damages, though the lease itself may impose one.

Special Considerations

A commercial landlord and tenant may agree, in the lease or in a separate agreement, to waive a jury trial for disputes arising from the lease, and may likewise agree to binding arbitration, with an arbitrator's decision favoring the landlord permitting immediate writ issuance upon docketing with the Superior Court under the Uniform Arbitration Act. 14 M.R.S. § 6017. Lease language should be reviewed carefully to avoid inadvertently sweeping a possession dispute into a mandatory arbitration clause. As noted above, a tenant must pay rent in arrears to maintain a defense once an action is filed.

Key Commercial Lease Drafting Considerations

- Define the notice period and cure rights expressly, since no statutory commercial notice period exists to fall back on.
- Include an express, clearly drafted jury trial waiver if a bench proceeding is preferred.
- Consider an arbitration clause but carve out possession disputes to avoid delaying repossession.
- Include an explicit self-help/re-entry clause only after consulting Maine counsel, given the absence of clear statutory or case authority on commercial self-help.
- Address mitigation obligations directly in the lease, since no statutory duty to mitigate applies to commercial tenancies.
- Provide for acceleration of rent and attorney's fees expressly, as neither is guaranteed by statute.
- Specify electronic and alternative notice-delivery methods in the lease.

Source Notes. *Statutory authorities reviewed: 14 M.R.S. §§ 6001, 6002, 6010-A, 6014 (Subchapter 1, Residential Landlords and Tenants) and 14 M.R.S. § 6017 (Subchapter 2, Commercial Leases), current through the 2025 session laws as reflected on the Maine Legislature's statutes website. ---*

CHAPTER 21

Maryland

NEUTRAL

Statutory Notice

Maryland does not require a landlord to give a commercial tenant statutory pre-filing notice before bringing a Failure to Pay Rent action; the 10-day written notice-of-intent-to-file requirement added to Md. Code Ann., Real Prop. § 8-401 is expressly limited to residential premises. For a commercial tenant holding over or breaching a lease, however, Real Property § 8-402 (holding over) and § 8-402.1 (breach of lease) apply to both residential and commercial tenancies and require 30 days' written notice of the breach and the landlord's intent to repossess (14 days where the tenant's conduct poses a clear and imminent danger of serious harm to persons or property). Commercial landlords should therefore not assume no notice is ever required — the answer depends on which of Maryland's several summary ejectment causes of action is being pursued.

Self-Help / Commercial Lockout

Self-help remedies remain available to a commercial landlord in Maryland, provided they are exercised peaceably and without breaching the peace. *K & K Mgmt., Inc. v. Lee*, 316 Md. 137, 557 A.2d 965, 979–80 (1989). The remedy generally requires that the tenant be in default beyond any applicable cure period, that the lease authorize re-entry, and that repossession occur without violence, threats, or confrontation. Maryland's courts have reaffirmed the remedy but continue to discourage its use given the practical risks of a breach-of-the-peace dispute. *Donegal Assocs., LLC v. Christie-Scott, LLC*, 248 Md. App. 631 (2020).

Jurisdiction and Venue

A landlord may seek possession and monetary damages in the same District Court proceeding. If damages sought exceed the constitutional jury-trial threshold, a party may demand a jury trial and have the case removed from the District Court to the Circuit Court. Md. Code Ann., Cts. & Jud. Proc. § 4-402(e). That threshold was raised from \$15,000 to \$25,000 by constitutional amendment approved by Maryland voters in November 2022, effective December 4, 2022 — meaning the \$15,000 figure in the 2022 baseline is now outdated and should be treated as \$25,000 going forward.

Timing

For a Failure to Pay Rent case, the court issues a summons for trial on the fifth day after the complaint is filed. Md. Code Ann., Real Prop. § 8-401. Removal to Circuit Court on a jury demand can add several months before trial.

Damages

A Maryland commercial landlord has a duty to mitigate damages, and rent-acceleration clauses are enforceable if expressly stated in the lease.

Special Considerations

Where a damages case is removed to Circuit Court, the tenant is generally required to continue paying rent pending trial. Where the landlord is awarded a judgment of restitution, the tenant retains a statutory right of redemption by tendering all past-due amounts, court costs, and fees before actual execution of the eviction order. Real Prop. § 8-401(e).

2026 Update Note

Effective October 1, 2024, the Renters' Rights and Stabilization Act of 2024 (2024 Md. Laws, H.B. 693) increased the waiting period between a judgment of possession and execution of the warrant of restitution from four to seven days, applicable to both residential and commercial ejectment cases, and substantially increased the District and Circuit Court surcharges assessed in summary ejectment and non-summary ejectment cases.

Key Commercial Lease Drafting Considerations

- Expressly authorize re-entry/self-help in the lease if the landlord wants to preserve that remedy, with clear default and cure triggers.
- Draft default notice provisions tracking whichever of §§ 8-401, 8-402, or 8-402.1 will actually apply to the anticipated breach.
- Include an express mitigation and reletting clause.
- Include an enforceable, clearly stated acceleration clause.
- Build in extra time for possible removal to Circuit Court on a jury demand above \$25,000.
- Address attorney's fees and cost-shifting expressly.
- Consider a redemption-rights waiver where permitted, given the statutory tenant redemption right.

Source Notes. Statutory authorities reviewed: Md. Code Ann., Real Prop. §§ 8-401, 8-402, 8-402.1; Md. Code Ann., Cts. & Jud. Proc. § 4-402(e); *K & K Mgmt., Inc. v. Lee*, 316 Md. 137 (1989); *Donegal Assocs., LLC v. Christie-Scott, LLC*, 248 Md. App. 631 (2020); *Renters' Rights and Stabilization Act of 2024*, H.B. 693 (2024 Md. Laws),

effective October 1, 2024; Maryland constitutional amendment raising the jury-trial threshold to \$25,000, effective December 4, 2022. ---

CHAPTER 22

Massachusetts

LANDLORD-FRIENDLY

Statutory Notice

When a commercial tenant defaults on rent, the landlord may terminate under the notice provisions specified in the lease. In the absence of such lease provisions, the landlord must give the tenant at least 14 days' written notice. Mass. Gen. Laws ch. 186, § 11A.

Self-Help / Commercial Lockout

Self-help remedies are not available in Massachusetts, even for commercial tenants. Mass. Gen. Laws ch. 184, § 18 prohibits forcible or self-help entry to recover possession of land or tenements and requires that possession be recovered through judicial process; unlawful lockouts and utility shutoffs can also carry criminal penalties.

Jurisdiction and Venue

Recovering possession (summary process) and recovering damages may require separate lawsuits. In a summary process case the landlord may sue for unpaid rent even where the tenancy was terminated for a reason other than nonpayment, but the landlord cannot include claims for other damages, such as property damage, in the summary process action — those require a separate civil suit.

Timing

Summary process to regain possession typically takes roughly 17 to 40 days after filing. The timing of a separate suit for non-rent damages depends on the court's docket and is variable. The Trial Court solicited public comment through November 2025 on proposed amendments to the Uniform Summary Process Rules addressing filing and service mechanics; as of this writing those amendments had not been finalized, so no substantive rule change is reported here.

Damages

If the landlord does not terminate the lease, the landlord has no duty to mitigate damages. A rent-acceleration clause is enforceable if expressly provided for in the lease and does not constitute a penalty.

Key Commercial Lease Drafting Considerations

- Include an express notice-and-cure provision to avoid defaulting to the 14-day statutory notice.
- Draft a rent-acceleration clause carefully to avoid characterization as an unenforceable penalty.
- Reserve the landlord's right to pursue non-rent damages in a separate civil action.
- Include express mitigation language if the parties intend a different mitigation standard than the no-duty default (applicable only where the lease is not terminated).
- Include an attorney's fees provision.
- Confirm self-help is not authorized by the lease, since it is unavailable under Massachusetts law regardless of lease language.

Source Notes. *Statutory authorities reviewed: Mass. Gen. Laws ch. 186, § 11A; Mass. Gen. Laws ch. 184, § 18; Mass. Gen. Laws ch. 239 (Summary Process for Possession of Land). ---*

CHAPTER 23

Michigan

NEUTRAL

Statutory Notice

Seven days' notice is required after the landlord serves a written demand for possession for nonpayment of rent; after the seven-day period, the landlord may recover possession by summary proceedings. Mich. Comp. Laws § 600.5714.

Self-Help / Commercial Lockout

Self-help is prohibited under Michigan law. The Anti-Lockout Statute, MCL § 600.2918, makes it unlawful for a landlord to forcibly remove or exclude a tenant, or to willfully interrupt utility service, to recover possession, and its protections may not be waived. A tenant forcibly and unlawfully put out may recover three times actual damages or \$200, whichever is greater, plus possession; a tenant otherwise unlawfully interfered with (e.g., by lockout or utility shutoff) may recover actual damages or \$200, whichever is greater, for each occurrence.

Jurisdiction and Venue

A landlord may join a claim for damages with the claim for possession of the premises; however, the court may order separate disposition of the possession and damages claims. Mich. Comp. Laws § 600.5739.

Timing

The court issues a summons directing the defendant to appear for trial within 30 days of the summons's issuance date, with the summons served not less than 10 days before the trial date. Mich. Comp. Laws § 600.5735. If judgment is entered for the landlord, the court issues a writ of restitution.

Damages

A landlord has a duty to mitigate damages when a tenant abandons the premises and stops paying rent due under the lease. An acceleration-of-rent clause may be enforceable, but under the Truth in Renting Act, MCL § 554.633(1)(i), (k), a lease provision purporting to release a party from the duty to mitigate is void, and an acceleration clause must allow that

the tenant may not be liable for the full accelerated amount because of the landlord's mitigation obligation, with either party entitled to have a court determine the actual amount owed. Mich. Comp. Laws § 600.5726 addresses the related but distinct context of accelerated indebtedness on forfeiture of a land contract.

Special Considerations

A tenant may attempt to delay the eviction hearing by filing a related action in a higher court and requesting a stay of the summary proceeding pending resolution of that action; the tenant's separate lawsuit must involve the leased premises and the eviction issue.

Key Commercial Lease Drafting Considerations

- Draft an acceleration clause that expressly preserves the tenant's right to a judicial determination of actual damages, consistent with MCL § 554.633.
- Do not attempt to waive the statutory mitigation duty — such waivers are void.
- Include a clear demand-for-possession and notice mechanism tracking the seven-day requirement.
- Address whether possession and damages claims will be pursued together or reserved for separate disposition.
- Include an attorney's fees provision.
- Anticipate potential delay tactics via related litigation and consider forum-selection and venue clauses.

Source Notes. Statutory authorities reviewed: Mich. Comp. Laws §§ 600.5714, 600.5726, 600.5735, 600.5739, 600.2918; Truth in Renting Act, MCL § 554.633. ---

CHAPTER 24

Minnesota

NEUTRAL

Statutory Notice

Unless required by the lease, a commercial landlord in Minnesota generally need not give the tenant statutory notice before bringing an eviction action. The 14-day pre-filing notice requirement added to Minn. Stat. § 504B.321, subd. 1a is, by its express terms, limited to residential tenants and does not apply to commercial leases.

Self-Help / Commercial Lockout

Minnesota does not permit a commercial landlord to use self-help to dispossess a tenant who remains in possession; possession must be recovered through a judicial eviction action. Where a commercial tenant has actually abandoned the premises, however, a landlord may take possession of and deal with the tenant's remaining personal property under Minn. Stat. § 504B.271, without that step itself constituting an unlawful eviction, since no person remains in possession to dispossess.

Jurisdiction and Venue

An eviction action may combine allegations of nonpayment of rent and material violation of the lease, though they are heard as alternative grounds. Minn. Stat. § 504B.285.

Timing

A hearing takes place between seven and 14 days after the summons is issued. Minn. Stat. § 504B.321. The 2023 amendments repealed the prior six-day cap on scheduling eviction trials, directing courts instead to set trial dates that allow "fair, thorough, and timely adjudication," considering case complexity, discovery needs, and preparation time — a change that applies to commercial as well as residential eviction trials, though courts must still prioritize scheduling of residential (not commercial) cases involving safety-endangerment allegations.

Damages

A landlord has no duty to mitigate damages unless the landlord has accepted the tenant's abandonment of the premises. Rent-acceleration clauses are enforceable.

2026 Update Note

Effective January 1, 2024, Minnesota Laws 2023, chapter 52 (article 19), amended Minn. Stat. §§ 504B.285 and 504B.321 to, among other things, repeal the former six-day cap on eviction trial scheduling, expand the required content of eviction complaints (including an itemized accounting for nonpayment claims and identification of the specific lease provision breached), permit additional written-communication methods for landlord notices, restrict bond requirements, and require courts to dismiss and expunge actions where filing and service requirements are not met. These procedural changes apply to commercial evictions filed under Chapter 504B, though most of the Act's substantive tenant protections remain residential-only.

Key Commercial Lease Drafting Considerations

- Draft an express notice-and-cure clause, since no statutory notice period applies to commercial defaults.
- Include an acceleration clause, as these remain generally enforceable.
- Address mitigation expressly, since the statutory no-duty default applies except on accepted abandonment.
- Anticipate longer, less predictable trial scheduling following the 2024 repeal of the six-day cap.
- Ensure any eviction complaint will include the itemized rent accounting or specific lease-breach detail now expected under § 504B.321.
- Address handling of abandoned personal property consistent with § 504B.271.
- Include an attorney's fees provision.

Source Notes. *Statutory authorities reviewed: Minn. Stat. §§ 504B.285, 504B.321, 504B.271; Minnesota Laws 2023, ch. 52, art. 19 (eff. Jan. 1, 2024, for leases entered into or renewed on or after that date). ---*

CHAPTER 25

Mississippi

LANDLORD-FRIENDLY

Statutory Notice

A landlord must give a defaulting commercial tenant three days' written notice to pay rent or quit the premises. Miss. Code Ann. § 89-7-27. Any default condition expressed in a written lease may also trigger the eviction process, and notice of default by email or text message is proper where the tenant has agreed in writing to that method of notice. If the tenant does not vacate within the notice period, the landlord may terminate the tenancy and file suit. *Id.*

Self-Help / Commercial Lockout

Mississippi permits self-help under limited circumstances: the written lease must specifically authorize the landlord's re-entry upon a lease violation, the landlord must give the tenant three days' written notice, and the landlord must not break in, use violence, or threaten violence in retaking possession.

Jurisdiction and Venue

A landlord may bring an action for possession of the premises together with an action for rent in the same proceeding.

Timing

An eviction proceeding typically takes roughly six weeks to nine months, depending on the court's docket. A tenant has seven days from the date of judgment to move out, unless the court orders otherwise based on the circumstances. Miss. Code Ann. § 89-7-31.

Damages

A rent-acceleration clause is enforceable if expressly provided for in the lease. A tenant who refuses to quit after lawful notice is liable for double rent during the holdover period. Miss. Code Ann. § 89-7-25.

Special Considerations

A tenant is not required to continue paying rent for a building destroyed by fire or otherwise, unless the tenant caused the destruction or expressly agreed to keep paying rent after destruction. Miss. Code Ann. § 89-7-3.

Key Commercial Lease Drafting Considerations

- Include an express re-entry/self-help authorization if the landlord wants to preserve that remedy, since it is unavailable absent explicit lease language.
- Authorize electronic (email/text) notice in writing to take advantage of the statutory allowance.
- Include an enforceable acceleration clause.
- Address holdover rent expressly, since double rent otherwise applies by statute.
- Include a casualty/destruction clause addressing continued rent obligations.
- Include an attorney's fees provision.

Source Notes. Statutory authorities reviewed: Miss. Code Ann. §§ 89-7-3, 89-7-25, 89-7-27, 89-7-31, as amended through Laws 2022, ch. 501 (S.B. 2461), effective April 21, 2022 — the most recent amendment identified to these sections as of August 2026. A bill introduced in the 2026 Regular Session (H.B. 499) proposing to shorten eviction trial-scheduling timelines was located but could not be confirmed as enacted; it is not relied upon here. ---

CHAPTER 26

Missouri

TENANT-FRIENDLY

Statutory Notice

No statutory notice is required in Missouri for expedited eviction proceedings under Mo. Rev. Stat. § 441.740, nor for leases that have been properly terminated under their own terms.

Self-Help / Commercial Lockout

Self-help remedies are prohibited in Missouri, including for commercial tenants. Even where a lease purports to authorize self-help, a landlord who changes locks, shuts off utilities, or otherwise excludes a tenant without a court eviction risks liability for wrongful eviction and conversion, potentially including business-interruption damages exceeding the unpaid rent.

Jurisdiction and Venue

Missouri provides several distinct eviction proceedings — rent-and-possession and unlawful detainer actions under Mo. Rev. Stat. ch. 535 and ch. 534, respectively, and immediate/emergency eviction under § 441.740 — filed in the circuit court for the county where the property is located. A claim for damages can generally be joined with a claim for possession, or the landlord may elect to pursue possession first and file a separate damages suit later.

Timing

Timing depends entirely on the court's docket; recent rent-and-possession and unlawful detainer proceedings have taken approximately six to seven months. Expedited, "immediate eviction" proceedings remain available under § 441.740 for emergency situations.

Damages

Missouri courts generally uphold damages provisions negotiated in good faith between the parties but are unlikely to enforce a penalty provision that produces a windfall for the landlord rather than compensating for actual damages; Missouri appellate courts have not squarely resolved the enforceability of rent-acceleration clauses. Missouri recognizes three

options on a tenant's default: the landlord may remain out of possession and sue for rent as it becomes due; give notice of intent to re-let to mitigate damages while reserving the right to sue for unpaid rent; or re-enter, take possession, and terminate the tenant's right to possession. A landlord is entitled to double the yearly rental value for a tenant's holdover after written demand and notice to quit. Mo. Rev. Stat. § 441.080. [△] The 2022 baseline also asserted a double-rent remedy for unauthorized subletting or assignment (citing "§ 534.537," a section number that could not be located in the current Missouri statutes) — this could not be independently verified and should be confirmed with local counsel before relying on it; Mo. Rev. Stat. § 441.030 does bar assignment or subletting without written landlord consent for terms of two years or less, but the specific double-rent consequence for that violation could not be confirmed.

Special Considerations

Missouri recognizes three general categories of eviction suits: (1) rent and possession, (2) unlawful detainer, and (3) immediate eviction, the last limited to emergencies involving risk of physical injury, substantial property damage, or drug-related criminal activity. Mo. Rev. Stat. § 441.740. Choosing between rent-and-possession and unlawful detainer largely turns on whether the landlord wants to resolve everything (possession and damages) in one proceeding or pursue possession first and damages separately.

2026 Update Note

Effective August 28, 2024, Missouri Senate Bill 895 (2024) bars counties, municipalities, and other political subdivisions from imposing or enforcing an eviction moratorium unless specifically authorized by state or federal law — foreclosing the kind of local eviction-moratorium orders some Missouri municipalities issued during the COVID-19 pandemic — and requires that transfers of title to rental property carrying an outstanding collectible judgment be filed with the circuit court within 30 days of transfer. Separately, § 441.740 was itself amended effective August 28, 2023 by Missouri Senate Bill 106 (2023); the amendment's specific substantive changes could not be independently confirmed from available secondary sources. [△] Confirm the precise text and effect of the 2023 amendment to § 441.740 with current Missouri statutory text or local counsel before relying on its details.

Key Commercial Lease Drafting Considerations

- Do not rely on lease language purporting to authorize self-help — it remains prohibited and risky regardless of lease terms.
- Draft damages provisions as genuine compensation, not a penalty, given Missouri courts' skepticism of windfall clauses.

- Address rent acceleration explicitly and expect potential judicial scrutiny given the unsettled case law.
- Specify which eviction pathway (rent-and-possession vs. unlawful detainer vs. joined damages) the parties anticipate.
- Include an express mitigation/reletting clause given the ambiguity in the common-law default rules.
- Include an attorney's fees provision.
- Build realistic timeline expectations into default/cure and remedy provisions given typical six-to-seven-month proceedings.

Source Notes. *Statutory authorities reviewed: Mo. Rev. Stat. §§ 441.080, 441.740, 534.137, 535.010, 535.110; Missouri Senate Bill 895 (2024 Mo. Laws), effective August 28, 2024; Missouri Senate Bill 106 (2023 Mo. Laws), amending § 441.740 effective August 28, 2023. ---*

CHAPTER 27

Montana

LANDLORD-FRIENDLY

Statutory Notice

A landlord must provide a tenant with three days' written notice before reentry. Mont. Code Ann. § 70-27-106. Notice is not required, however, to file an action for possession of the property. Id. § 70-27-107.

Self-Help / Commercial Lockout

A landlord may use self-help remedies when evicting a commercial tenant, but may not use force in retaking possession. Changing locks alone does not constitute forcible entry.

Jurisdiction and Venue

A landlord may bring an action for damages together with an action for possession of the premises in the same lawsuit. Id. § 70-27-205. An action for repossession may be brought in the justice's court or the district court of the county where the property is situated. Id. § 70-27-101.

Timing

In an eviction proceeding, the tenant has 10 days to answer after service of the complaint. Id. § 70-27-117. Answers filed in justice's court are tried within 10 days after the tenant's appearance or answer. Id. § 70-27-202 (recodified provisions govern trial timing under Chapter 27). If the proceeding is for nonpayment of rent, a judgment may not be enforced until five days after entry; otherwise the judgment may be enforced immediately. Id. § 70-27-205(3). Summary proceedings remain available for unlawful detainer actions. Id. § 70-16-109.

Damages

A Montana landlord has a duty to mitigate damages when a tenant breaches a lease. A rent-acceleration clause must be expressly provided for in the lease to be enforced. Damages for forcible entry or unlawful detainer may be recovered at three times actual damages. Id. § 70-27-206.

Special Considerations

In a nonpayment proceeding, the tenant may retain possession by paying the rent owed within five days after entry of judgment. Id. § 70-27-205(3). If a landlord accepts rent after a lease expires, the lease is presumed renewed on the same terms for the same term, not to exceed one year. Id. § 70-26-204. A 2023 bill that would have generally revised Montana landlord-tenant law (H.B. 732) died in committee and did not become law, so no material statutory change to Chapter 27 was identified for 2023–2026.

Key Commercial Lease Drafting Considerations

- Address self-help/re-entry procedures expressly to define the parties' expectations, even though Montana permits it by default absent force.
- Include an express rent-acceleration clause, since none is implied.
- Include a mitigation clause consistent with (or clarifying) the statutory duty to mitigate.
- Address treble-damages exposure for any disputed forcible-entry or unlawful-detainer scenario.
- Specify whether renewal is intended if rent is accepted post-expiration, to avoid an unintended one-year statutory renewal.
- Include an attorney's fees provision.

Source Notes. Statutory authorities reviewed: Mont. Code Ann. §§ 70-16-109, 70-26-204, 70-27-101, 70-27-106, 70-27-107, 70-27-117, 70-27-202, 70-27-205, 70-27-206; 2023 Mont. H.B. 732 (died in committee, not enacted). ---

CHAPTER 28

Nebraska

LANDLORD-FRIENDLY

Statutory Notice

A landlord must give the tenant three days' written notice before proceeding with an eviction action based on a monetary default. Neb. Rev. Stat. § 25-21,221. This section applies to forcible entry and detainer actions under §§ 25-21,219 to 25-21,235, which are expressly distinct from, and do not apply to, tenancies governed by Nebraska's Uniform Residential Landlord and Tenant Act. Neb. Rev. Stat. § 25-21,219.

Self-Help / Commercial Lockout

Self-help remedies are prohibited under Nebraska law.

Jurisdiction and Venue

District and county courts have jurisdiction over forcible entry and detainer actions. Neb. Rev. Stat. § 25-21,219. The proceeding may determine both the right to possession of the premises and rents or other damages owed. *Id.*

Timing

An eviction trial must take place not less than 10 days but not more than 14 days after the summons is issued. Neb. Rev. Stat. § 25-21,223. A continuance may not exceed seven days absent extraordinary cause supported by an undertaking covering accruing rent and damages. *Id.* § 25-21,225. The time to complete a separate action for damages is variable and depends on the court's docket.

Damages

A Nebraska landlord has a duty to mitigate damages, but the tenant bears the burden of proving the landlord unreasonably failed to do so. If the landlord terminates the lease, the tenant is generally not required to pay future rent and liabilities, but a rent-acceleration clause is enforceable if expressly stated in the lease.

Key Commercial Lease Drafting Considerations

- Confirm the lease's default-notice provisions align with (or intentionally extend) the three-day statutory minimum.
- Do not rely on self-help — it is categorically unavailable in Nebraska.
- Include an express rent-acceleration clause to preserve post-termination remedies.
- Address mitigation obligations and evidentiary burdens in the lease to reduce future disputes.
- Include an attorney's fees provision.
- Plan around the compressed 10-to-14-day trial-scheduling window when assessing litigation strategy.

Source Notes. Statutory authorities reviewed: Neb. Rev. Stat. §§ 25-21,219, 25-21,221, 25-21,223, 25-21,225, current as reflected on the Nebraska Legislature's official statutes site; no amendments to these specific sections were identified within the 2023–2026 window (the most recent amendment located to § 25-21,219 was Laws 2021, LB320, § 1, predating this review period).

CHAPTER 29

Nevada

LANDLORD-FRIENDLY

Statutory Notice

Nevada's summary eviction statutes distinguish between monetary and non-monetary defaults. For nonpayment of rent in a commercial tenancy, NRS 40.2542 governs and requires a notice advising the tenant that it may be evicted at or before noon of the fifth full day (excluding weekends and holidays) following service unless the tenant pays the rent due or files an affidavit with the court contesting the eviction. For non-monetary defaults (e.g., a lease covenant violation), a landlord must proceed under NRS 40.2516, which requires a five-day notice to cure or quit identifying the breach, followed — if the tenant does not cure — by a second notice (a notice to quit for unlawful detainer) directing the tenant to vacate and advising of the right to contest by filing an affidavit with the court. This two-notice structure for non-monetary defaults matches the 2022 baseline's description, though the specific timing (five days, not a generic "notice") is more precisely tied to NRS 40.2516 and 40.2542 for commercial premises specifically (as distinguished from the residential process in NRS 40.253).

Self-Help / Commercial Lockout

Nevada continues to permit a form of statutory commercial lockout under NRS 118C.200. A landlord may change the door locks of a commercial tenant delinquent in rent if the landlord gives written notice (by certified mail) of the delinquency and the landlord's intent to change the locks at least three days beforehand, and posts a notice on the front door of the premises identifying where a new key may be obtained during regular business hours (conditioned on payment of overdue rent). A landlord who violates NRS 118C.200 exposes itself to statutory remedies under NRS 118C.210, including recovery of possession or lease termination by the tenant, plus damages of at least one month's rent or \$500 (whichever is greater), attorney's fees, and costs, offset by any rent still owed.

Jurisdiction and Venue

A "summary" eviction proceeding under NRS 40.2516/40.2542 seeks possession only; a landlord must file a separate plenary action to recover money damages, though it may do so before or after the summary proceeding. Alternatively, a landlord may pursue a "formal"

unlawful detainer action combining possession and damages claims in a single suit, with a show-cause hearing available for expedited possession pending trial. These actions are filed in the justice court (or district court for larger claims) in the township/county where the property is located.

Timing

A summary eviction hearing on a properly filed tenant affidavit is typically calendared quickly, generally within about a week of the contest being filed, given the five-day notice-and-cure/quit structure. A formal eviction proceeding, by contrast, follows ordinary civil litigation timelines and takes materially longer.

Damages

Nevada does not require an acceleration clause to be separately/specially stated to be enforceable, but a landlord does have a duty to mitigate damages upon abandonment. Under NRS 40.360, in an action for forcible entry or unlawful detainer, the court or jury assesses damages occasioned by the wrongful conduct and, where the unlawful detainer follows a rent default, awards the rent due plus treble (three times) the assessed damages against a defendant found guilty of forcible entry or unlawful detainer.

Key Commercial Lease Drafting Considerations

- Include an express lockout/self-help notice mechanism consistent with NRS 118C.200 if the landlord wants to preserve that remedy.
- Draft default and cure provisions that track the NRS 40.2516 two-notice (cure, then quit) structure for non-monetary defaults.
- Include an acceleration clause (not statutorily required, but recommended for clarity).
- Address the landlord's mitigation obligations and reletting rights.
- Consider whether to pursue summary eviction (possession only, fast) versus formal eviction (combined possession/damages, slower) and draft remedies language accordingly.
- Include an attorney's fees provision, as fee-shifting is not automatic outside the treble-damages framework of NRS 40.360.

Source Notes. Statutory authorities reviewed: Nev. Rev. Stat. §§ 40.2516, 40.2542, 40.253, 40.360, 118C.200, 118C.210. ---

CHAPTER 30

New Hampshire

LANDLORD-FRIENDLY

Statutory Notice

For a nonresidential (commercial) tenant who neglects or refuses to pay rent due and in arrears upon demand, seven days' notice is sufficient. If rent is payable more frequently than once every three months, a notice equal to the rent period is sufficient, and three months' notice is sufficient in all cases. The eviction notice must state with specificity the reason for eviction, and — if based on nonpayment — must inform the tenant of any right to avoid eviction by paying arrearages and liquidated damages under RSA 540:9. N.H. Rev. Stat. Ann. § 540:3.

Self-Help / Commercial Lockout

Self-help remedies remain unavailable in New Hampshire; a landlord must proceed through judicial eviction. The statutory penalties for unlawful lockouts and utility shutoffs (RSA 540-A) apply to residential premises, but commercial landlords likewise have no self-help remedy and must obtain a writ through the eviction process to regain possession.

Jurisdiction and Venue

Eviction actions are heard in the New Hampshire circuit court (district division). Because money judgments in an eviction proceeding are capped, a landlord will typically need to pursue lease damages beyond that cap in a separate civil action. N.H. Rev. Stat. Ann. § 540:13.

Timing

After a writ issues, it is returnable seven days after service, and a tenant has until the return date to file an appearance contesting the eviction. If the tenant appears, the court schedules a hearing within ten days of the appearance being filed. Judgment triggers a seven-day window to note an appeal and thirty days for filing with the New Hampshire Supreme Court. N.H. Rev. Stat. Ann. § 540:13.

Damages

Damages are generally governed by the lease terms. New Hampshire law does not clearly establish a landlord's duty to mitigate damages specific to commercial leases, though a general contract-law duty to mitigate exists. Any money judgment awarded within the eviction proceeding itself remains capped, without precluding either party from pursuing additional amounts in a separate action.

Special Considerations

The eviction-proceeding money judgment is limited to a maximum of \$1,500 and does not preclude either party from bringing a subsequent claim in a court of competent jurisdiction for amounts exceeding that cap. N.H. Rev. Stat. Ann. § 540:13.

2026 Update Note

RSA 540:3 was amended by 2024, ch. 9, § 4, effective January 1, 2025. The amendment restructured the notice provisions to separately address residential (30-day, or 7-day for specified lease violations) and nonresidential/commercial (7-day for nonpayment, tracking the rent-period rule) notice periods, and added the requirement that the eviction notice state with specificity the reason for eviction. Commercial landlords and counsel should confirm their notice forms track the current, more detailed content requirements rather than older short-form notices.

Key Commercial Lease Drafting Considerations

- Contractual notice-and-cure provisions, since RSA 540:3's default commercial notice period (7 days for nonpayment) is brief but content requirements are now more detailed.
- Explicit statement of reasons in any notice to quit, tracking the current statute's specificity requirement.
- Damages/liquidated-damages provisions that anticipate the \$1,500 cap on money judgments obtainable within the eviction action itself.
- A separate-action reservation clause preserving the landlord's right to pursue full contract damages outside the eviction proceeding.
- Mitigation language, given the uncertain state of New Hampshire common law on a landlord's duty to mitigate in commercial leases.
- Attorney's fees clause, since fee-shifting is not automatic.

Source Notes. *Statutory authorities reviewed: N.H. Rev. Stat. Ann. §§ 540:2, 540:3, 540:9, 540:13, 540-A; 2024 N.H. Laws ch. 9, § 4 (amending RSA 540:3), effective January 1, 2025. ---*

CHAPTER 31

New Jersey

LANDLORD-FRIENDLY

Statutory Notice

No statutory notice period is required to evict a commercial tenant in default of rent under the Summary Dispossess Act. N.J. Stat. Ann. § 2A:18-53. Written notice to quit is required to remove a commercial holdover tenant. Id. § 2A:18-53. Separately, written notice must be given before disposing of a tenant's abandoned personal property, unless the lease provides otherwise. Id. § 2A:18-72.

Self-Help / Commercial Lockout

Self-help remains unavailable as a practical matter for commercial landlords in New Jersey. Recovery of possession must proceed through a summary dispossess action in Superior Court followed by a court-issued warrant of removal executed by a court officer; New Jersey courts have not squarely resolved whether a lease provision expressly authorizing self-help would be enforceable, and practitioners continue to treat self-help as a materially litigation-risky path that should not be relied upon.

Jurisdiction and Venue

A summary dispossession action for possession is filed in the Special Civil Part of the Law Division of the Superior Court in the county where the leased premises is located. Possession is the only remedy available in that proceeding; lease damages must be pursued in a separate lawsuit.

Timing

Trial in a summary dispossession action is generally scheduled between 10 and 30 days after service of the complaint. After judgment for possession, the landlord must apply for a warrant of removal within 30 days of judgment; the warrant is then executed by a court officer, typically after several days' notice. The overall process commonly takes roughly 60 to 90 days. A separate damages action proceeds on the ordinary civil docket.

Damages

Acceleration clauses must be expressly stated in the lease to be enforceable. A landlord has a duty to mitigate damages upon a tenant's breach, and the landlord bears the burden of proving reasonable mitigation efforts.

Special Considerations

If a tenant contests the eviction, courts commonly refer the matter to mediation before setting it for trial. Even after judgment for possession, a commercial tenant retains a statutory right to "redeem" the tenancy by paying the rent found owed (as determined by the court or stated in a default judgment certification); a timely redemption permits the tenant to remain. N.J. Stat. Ann. § 2A:18-55. A tenant generally may not appeal a summary dispossession judgment except on jurisdictional grounds. Id. § 2A:18-59.

Key Commercial Lease Drafting Considerations

- Express, unambiguous notice-to-quit and cure provisions, since the statute itself imposes no default notice period.
- Express acceleration clause, since acceleration is unenforceable absent explicit lease language.
- Mitigation and reletting language, given the landlord's statutory mitigation duty and burden of proof.
- Redemption-rights awareness in drafting default remedies, since a tenant can redeem even after a possession judgment.
- Separate reservation of damages claims, since possession and damages cannot be combined in the summary dispossession proceeding.
- Caution against relying on a lease self-help clause given unresolved New Jersey case law.
- Attorney's fees provision, since fee-shifting is not automatic.

Source Notes. *Statutory authorities reviewed: N.J. Stat. Ann. §§ 2A:18-53, 2A:18-55, 2A:18-59, 2A:18-72. ---*

CHAPTER 32

New Mexico

LANDLORD-FRIENDLY

Statutory Notice

Three days' written notice to quit must be given before a forcible entry or unlawful detainer action may be filed. N.M. Stat. Ann. § 35-10-3.

Self-Help / Commercial Lockout

New Mexico's Uniform Owner-Resident Relations Act, which restricts self-help remedies (e.g., lockouts, utility shutoffs, seizure of personal property), applies only to residential dwelling units and expressly does not govern commercial tenancies. N.M. Stat. Ann. § 47-8-1 et seq. There is no comparable New Mexico statute governing commercial self-help, and secondary authority on the point is inconsistent. Common-law self-help repossession without breach of the peace has historically been treated as legally uncertain and disfavored by New Mexico courts and practitioners given the litigation risk it creates; landlords are generally advised to proceed judicially. [△] Could not independently verify with confidence whether New Mexico case law affirmatively forecloses commercial self-help — confirm current status with local counsel before relying on self-help as a remedy.

Jurisdiction and Venue

A landlord may recover both possession and damages in a single forcible entry and detainer action. N.M. Stat. Ann. § 35-10-4. The action is filed in the magistrate court or district court for the county where the property is located, but magistrate court jurisdiction is limited to claims of \$10,000 or less. Id. § 35-3-3.

Timing

The case must be heard within 10 days after service of process on the tenant, though the court may continue the matter for up to 10 additional days.

Damages

Rent acceleration clauses are enforceable. New Mexico does not impose a general statutory duty on a commercial landlord to mitigate damages. If the landlord recovers possession and the tenant appeals to district court, the tenant owes the actual rent accrued through the

magistrate court judgment, plus double the rent accruing thereafter through entry of judgment in the district court. N.M. Stat. Ann. § 35-10-5.

Special Considerations

Where the court finds for the landlord, it customarily awards the rent owed and possession, while allowing the tenant a reasonable period to vacate.

Key Commercial Lease Drafting Considerations

- Express acceleration clause to ensure enforceability.
- No-mitigation-required language, consistent with the absence of a statutory mitigation duty (subject to any contrary lease terms).
- Caution regarding self-help: given the ambiguous legal landscape, an express, carefully limited self-help clause (peaceable re-entry only) is preferable to relying on undefined common-law rights.
- Clear default/notice provisions building on (or extending) the bare three-day statutory notice.
- Appeal-related rent provisions reflecting the double-rent-on-appeal exposure under § 35-10-5.
- Attorney's fees provision, since fee-shifting is not automatic under the forcible entry and detainer statute.

Source Notes. *Statutory authorities reviewed: N.M. Stat. Ann. §§ 35-3-3, 35-10-3, 35-10-4, 35-10-5, 47-8-1 et seq. (Uniform Owner-Resident Relations Act, residential scope). ---*

CHAPTER 33

New York

NEUTRAL

Statutory Notice

For nonpayment of rent, a landlord must serve a 14-day written rent demand before commencing a nonpayment summary proceeding; the demand must provide a good-faith approximation of the amount owed, the manner in which it may be paid, and the name, address, and contact information of the person to whom payment should be made. N.Y. Real Prop. Acts. Law § 711(2). A holdover proceeding requires a predicate notice terminating the tenancy in accordance with the lease and applicable notice provisions rather than a rent demand.

Self-Help / Commercial Lockout

New York continues to recognize limited peaceable self-help re-entry for commercial tenancies at common law, where the right is expressly reserved in the lease. A landlord relying on self-help must reenter without force, threats, or breach of the peace (for example, changing locks without confrontation is more likely to be deemed peaceable, while stationing security guards to physically bar a tenant or threatening to call police on a returning tenant has been held to breach the peace and expose the landlord to liability). Given the litigation risk and fact-specific nature of the peaceable-re-entry standard, judicial eviction remains the more reliable and commonly used path even where a lease authorizes self-help.

Jurisdiction and Venue

Damages may be sought together with possession in a summary proceeding. N.Y. Real Prop. Acts. Law § 601. Commercial summary proceedings are heard in the New York City Civil Court (Commercial/Housing Part, by borough), in District Court in certain counties (e.g., Nassau and Suffolk), or in county, city, town, or village courts of appropriate jurisdiction elsewhere in the state. Id. § 701.

Timing

After a nonpayment or holdover petition is filed, the notice of petition must be made returnable within a compressed statutory window (generally within about ten days of

service, consistent with RPAPL Article 7's expedited summary-proceeding design); if the tenant answers, trial is set on a short timetable. If judgment favors the landlord, the warrant of eviction issues promptly, while a default by the tenant leads to issuance of the warrant on a somewhat longer statutory timeline. N.Y. Real Prop. Acts. Law § 732. Overall, an uncontested case commonly resolves in 30–90 days, while a contested case with defenses or counterclaims can take several months.

Damages

New York does not impose a general duty on a commercial landlord to mitigate damages. A rent acceleration clause is enforceable when expressly stated in the lease, though case law continues to scrutinize whether the full accelerated amount is recoverable or instead constitutes an unenforceable penalty, particularly where the landlord has relet the premises and effectively received a windfall. Attorney's fees are recoverable only if expressly provided for in the lease.

Key Commercial Lease Drafting Considerations

- Express, precisely drafted rent demand/notice provisions consistent with RPAPL § 711(2)'s content requirements.
- Explicit self-help/peaceable re-entry clause if the landlord wishes to preserve that remedy, paired with strict internal protocols to avoid a breach-of-the-peace finding.
- Acceleration clause drafted to withstand penalty-clause scrutiny (e.g., present-value discounting, credit for reletting proceeds).
- Attorney's fees provision, since fee-shifting is not automatic.
- No-mitigation-required language, subject to case-law limits on acceleration recovery.
- Clear designation of the proper court/venue for the specific property location given New York's fragmented commercial summary-proceeding jurisdiction.

Source Notes. *Statutory authorities reviewed: N.Y. Real Prop. Acts. Law §§ 601, 701, 711, 732. ---*

CHAPTER 34

North Carolina

LANDLORD-FRIENDLY

Statutory Notice

North Carolina imposes no general statutory notice requirement for commercial evictions where the lease itself addresses default and termination. Where a written or oral lease is silent on when the tenant's right to possession is forfeited for nonpayment, N.C. Gen. Stat. § 42-3 implies a forfeiture of the term if rent is not paid within 10 days after the landlord (or its agent) demands the rent due.

Self-Help / Commercial Lockout

Commercial landlords in North Carolina retain a common-law self-help remedy. Under § 42-3, once the implied 10-day forfeiture period following a rent demand has passed (where the lease is silent on the point), the landlord may reenter and dispossess the tenant without first declaring a forfeiture or having reserved a reentry right in the lease — most commonly accomplished by peaceably padlocking the premises. Any reentry must be peaceable; North Carolina courts construe "breach of the peace" broadly, so that virtually any tenant objection at the scene forecloses self-help and leaves summary ejectment through the courts as the landlord's only safe remedy.

Jurisdiction and Venue

A landlord may pursue a summary ejectment action seeking possession and damages together, or possession first with damages later. N.C. Gen. Stat. § 42-28. District courts have a \$25,000 jurisdictional limit for civil claims generally, which governs the damages a summary ejectment action filed in district court may include. N.C. Gen. Stat. § 7A-243. This corrects the 2022 baseline, which cited a \$10,000 limit; that figure was superseded well before the baseline was written — the limit was raised from \$10,000 to \$25,000 by S.L. 2013-159, effective for actions filed on or after August 1, 2013 — so this is a correction of a stale citation rather than a 2023–2026 change. The action must be filed in the county where the property is located.

Timing

After the complaint is filed, the clerk of superior court issues a summons requiring the tenant to appear within a period not exceeding seven days from issuance, excluding weekends and legal holidays. N.C. Gen. Stat. § 42-28. If the tenant fails to appear or is defaulted, the landlord may obtain a writ of possession, which the sheriff must execute within a matter of days of receipt. Id. § 42-36.2.

Damages

Rent acceleration clauses are enforceable, but a landlord has a duty to mitigate damages once it regains possession of the premises.

Special Considerations

In a summary ejectment action based on nonpayment of rent, the proceeding is stayed or discontinued if the tenant pays or tenders the rent due plus court costs before judgment. N.C. Gen. Stat. § 42-33.

Key Commercial Lease Drafting Considerations

- Express default and forfeiture provisions to avoid reliance on the § 42-3 implied 10-day/demand default rule.
- Explicit self-help clause reserving the reentry right, understanding that any tenant objection at the scene will likely defeat peaceable self-help.
- Rent acceleration clause paired with mitigation/reletting language given the landlord's mitigation duty.
- Provisions addressing the interplay between the cure-by-tender right (§ 42-33) and any acceleration remedy the landlord wants to preserve.
- Awareness of the \$25,000 district-court jurisdictional limit when structuring combined possession/damages claims.
- Attorney's fees provision, since fee-shifting is not automatic.

Source Notes. Statutory authorities reviewed: N.C. Gen. Stat. §§ 7A-243, 42-3, 42-28, 42-33, 42-36.2; S.L. 2013-159 (raising the district court jurisdictional limit to \$25,000, effective August 1, 2013 — a correction to the stale \$10,000 figure in the 2022 baseline, not a 2023–2026 change). ---

CHAPTER 35

North Dakota

NEUTRAL

Statutory Notice

Three days' written notice must be given before an eviction proceeding may be initiated. N.D. Cent. Code Ann. § 47-32-02.

Self-Help / Commercial Lockout

Self-help remedies remain unavailable in North Dakota; a landlord must proceed through the statutory eviction action to regain possession.

Jurisdiction and Venue

An eviction action for a holdover or material lease breach may be maintained in the appropriate district court, and possession and damages may be awarded in the same proceeding. N.D. Cent. Code Ann. §§ 47-32-01, 47-32-04, 47-16-13.4.

Timing

The eviction hearing must be held between three and fifteen days after the eviction action is served on a tenant within the county, or seven to fifteen days for a tenant served outside the county. N.D. Cent. Code Ann. § 47-32-02. Once the court issues an eviction order, the landlord may use it to have the tenant immediately removed, though a tenant may be granted up to five additional days to vacate upon a showing of substantial hardship. Id. § 47-32-04.

Damages

An evicted commercial tenant remains liable for rent for the remainder of the lease term, subject to the landlord's duty to mitigate damages. N.D. Cent. Code Ann. § 47-16-13.7. Reasonable attorney's fees are recoverable. Id. § 47-16-13.6.

Special Considerations

If a landlord accepts rent after lease expiration, the lease is presumed renewed on the same terms for the same term length, up to one year. N.D. Cent. Code Ann. § 47-16-06. Abandoned property worth less than \$2,500 may be kept or disposed of 28 days after the

tenant vacates. Id. § 47-16-30.1. Separately, North Dakota enacted a new eviction-record-sealing mechanism (2025 S.B. 2238) allowing a tenant to petition to seal an eviction record seven years after satisfying a judgment for nonpayment or property damage (or immediately in domestic-violence-related cases); this is a court-records/tenant-screening measure rather than a change to the commercial eviction process itself, and does not alter the notice, self-help, jurisdiction, timing, or damages framework above.

Key Commercial Lease Drafting Considerations

- Explicit default and notice provisions building on the bare three-day statutory notice.
- Mitigation and reletting language, given the landlord's statutory mitigation duty.
- Attorney's fees clause, consistent with and reinforcing the statutory fee-shifting right.
- Hold-over/renewal language addressing the statutory presumption of renewal upon acceptance of rent after lease expiration.
- Abandoned-property disposition provisions coordinated with the 28-day/\$2,500 statutory default rule.
- No self-help clause reliance, since self-help is unavailable by statute.

Source Notes. Statutory authorities reviewed: N.D. Cent. Code Ann. §§ 47-16-06, 47-16-13.4, 47-16-13.6, 47-16-13.7, 47-16-30.1, 47-32-01, 47-32-02, 47-32-04; 2025 N.D. Laws (S.B. 2238, eviction-record sealing, not core to commercial process). ---

CHAPTER 36

Ohio

NEUTRAL

Statutory Notice

Three days' statutory notice to leave the premises is required before a forcible entry and detainer action may be filed. Ohio Rev. Code Ann. § 1923.04.

Self-Help / Commercial Lockout

Ohio continues to permit commercial self-help repossession at common law, distinct from the residential Landlord-Tenant Act's prohibition on non-judicial evictions. A landlord may use self-help where: the tenant is holding over unlawfully or in breach of the lease; the landlord has given notice of termination or an opportunity to cure; the lease itself provides for self-help repossession; and the repossession is accomplished without a breach of the peace. Ohio courts have reasoned that the legislature's choice to prohibit self-help in residential settings while enacting no comparable prohibition for commercial leases weighs against treating commercial self-help provisions as void on public-policy grounds (see *Northfield Park Assocs. v. Northeast Ohio Harness*, 36 Ohio App. 3d 14 (Cuyahoga Cty. 1987)).

Jurisdiction and Venue

A forcible entry and detainer action may include a claim for damages under the lease, although the court may, for good cause, continue the trial of the damages claim separately from the possession claim. Ohio Rev. Code Ann. § 1923.081.

Timing

Most courts schedule a hearing between roughly fourteen and twenty-one days after the complaint is filed. If judgment favors the landlord, the court issues a writ of restitution, which must be executed within ten days of issuance.

Damages

A landlord has a duty to mitigate damages. Acceleration clauses are generally enforceable if expressly provided for in the lease agreement.

2026 Update Note

Effective April 9, 2025, Ohio S.B. 237 (135th General Assembly) amended R.C. Chapter 1923, including §§ 1923.01 and 1923.05. The amendments expand forcible entry and detainer grounds to include a tenant financially responsible for, and in default on, municipally provided utility service, and add a protection barring an eviction action from naming a minor tenant as a defendant where a parent or adult guardian is also named, with dismissal and fee-shifting to the minor tenant as a remedy for violation. These changes are directed principally at residential/utility and minor-tenant scenarios and do not materially alter the commercial notice, self-help, jurisdiction, timing, or damages framework described above, but commercial landlords and counsel should be aware the underlying chapter was amended in 2025.

Key Commercial Lease Drafting Considerations

- Express self-help clause with notice-and-cure mechanics tracking the Northfield Park factors (termination/cure notice, lease authorization, peaceable execution).
- Acceleration clause expressly stated in the lease to ensure enforceability.
- Mitigation and reletting language, given the landlord's statutory mitigation duty.
- Coordination of possession and damages claims, anticipating that a court may bifurcate and continue the damages portion for good cause.
- Attorney's fees provision, since fee-shifting is not automatic outside the narrow minor-tenant-defendant scenario added in 2025.
- Contractual notice periods tailored to the business, since three days is a bare statutory minimum.

Source Notes. *Statutory authorities reviewed: Ohio Rev. Code Ann. §§ 1923.01, 1923.04, 1923.05, 1923.081; Northfield Park Assocs. v. Northeast Ohio Harness, 36 Ohio App. 3d 14, 521 N.E.2d 466 (Cuyahoga Cty. 1987); 2025 Ohio S.B. 237 (135th Gen. Assemb.), effective April 9, 2025. ---*

CHAPTER 37

Oklahoma

LANDLORD-FRIENDLY

Statutory Notice

No notice to quit is required when the lease specifies a termination date. Okla. Stat. Ann. tit. 41, § 8. Where a tenant neglects or refuses to pay rent due for a period of three months or longer, ten days' written notice to quit is required before the lease is deemed terminated, unless the rent is paid within that period. Id. § 6. A lease provision expressly waiving the requirement of a demand or notice to quit remains enforceable under Oklahoma case law.

Self-Help / Commercial Lockout

Self-help remains prohibited in Oklahoma; the statutory forcible entry and detainer procedure is the exclusive method for regaining possession.

Jurisdiction and Venue

Claims for collection of rent or property damage may be joined with an action for possession in district court. Okla. Stat. Ann. tit. 12, § 1148.1. The action may proceed on the district court's small claims docket where the amount in controversy does not exceed the small-claims jurisdictional amount (\$10,000). Id. §§ 1148.14, 1751. A landlord may instead pursue possession and damages in separate proceedings, and local counsel commonly recommends filing a separate damages action.

Timing

After an action is filed, the summons requires the tenant to appear at trial; under 2025 amendments, the summons must generally be served at least seven days before trial (increased from three), with the return day no later than the trial date. Okla. Stat. Ann. tit. 12, § 1148.5. Separately, for actions under Title 41, § 132(C)–(D), the summons period runs not less than five nor more than ten days from issuance. Id. §§ 1148.4, 1148.16. After a writ of possession issues, the tenant receives 48 hours' notice to vacate. Id. § 1148.10A.

Damages

Collection of rent, damages to the premises, restitution for unlawful possession by a holdover or forcible-possession tenant, and reasonable attorney's fees may be recovered by

the prevailing party. Okla. Stat. Ann. tit. 12 §§ 1148.1, 1148.2, 1148.9. As a general rule, future (unaccrued) rent cannot be collected where the landlord retakes possession, absent contrary lease provision addressing damages.

Special Considerations

If a landlord accepts rent after a lease expires, the lease is presumed to have renewed on the same terms and for the same term length, up to one year. Okla. Stat. Ann. tit. 41, § 35. Where a tenant abandons or is evicted and leaves personal property behind, the landlord may take possession of the property 10 days after mailing notice, or 10 days after the tenant is personally served with notice; if the tenant does not reclaim the property or indicate an intent to do so, the landlord may sell it at public sale, subject to the tenant paying all outstanding rent and damages before any return of the property. Id. § 52.

2026 Update Note

Effective November 1, 2025, Oklahoma S.B. 128 amended 12 Okla. Stat. §§ 1148.4, 1148.5, 1148.5A, and 1148.16, principally by extending the minimum period between service of summons and trial from three days to seven days, and by requiring the summons form to be developed in plain, understandable language by the Oklahoma Bar Association. Commercial landlords and counsel should build the longer minimum service-to-trial window into eviction timelines going forward.

Key Commercial Lease Drafting Considerations

- Express lease-term-expiration language to avoid triggering the ten-days'-notice-for-nonpayment default rule where a fixed term is intended to control.
- Express waiver of demand/notice-to-quit requirements where the landlord wants to shorten the pre-filing runway, consistent with enforceable waiver case law.
- Future-rent/liquidated damages provision, since future rent is not recoverable by default upon repossession absent contrary lease language.
- Attorney's fees provision, reinforcing the statutory fee-shifting right.
- Abandoned-property disposition provisions coordinated with the 10-day notice/public-sale statutory framework.
- Awareness of the extended (now seven-day) minimum summons-to-trial period from the 2025 amendment when projecting possession timelines.
- Hold-over/renewal language addressing the statutory presumption of renewal upon post-expiration rent acceptance.

Source Notes. *Statutory authorities reviewed: Okla. Stat. Ann. tit. 41, §§ 6, 8, 35, 52; tit. 12, §§ 1148.1, 1148.2, 1148.4, 1148.5, 1148.5A, 1148.9, 1148.10A, 1148.14, 1148.16, 1751; 2025 Okla. S.B. 128, effective November 1, 2025.*

CHAPTER 38

Oregon

LANDLORD-FRIENDLY

Statutory Notice

Oregon draws a sharp line between residential and commercial tenancies. For a commercial tenant, no statutory notice to quit is required before a landlord commences a forcible entry and detainer (FED) action for nonpayment of rent — the action may be filed as soon as the tenant fails to pay rent within ten days after it becomes due under the lease (or such other period as the lease specifies). Or. Rev. Stat. §§ 91.090, 105.115(1)(b). Where notice is otherwise required to terminate a commercial tenancy (e.g., for a periodic or holdover tenancy under ORS 91.060–91.080), the tenant may waive that notice by the terms of a written lease. Or. Rev. Stat. § 105.120.

Self-Help / Commercial Lockout

Oregon permits peaceable self-help for commercial landlords. Entry to recover possession must be made "in a peaceable manner and without force." Or. Rev. Stat. § 105.105. Oregon courts require that the lease expressly authorize reentry/relocking and that the landlord exercise it without force or breach of the peace; any use of force renders the self-help unlawful.

Jurisdiction and Venue

FED actions are tried in the circuit court for the county in which the property is located. Or. Rev. Stat. § 105.110. The action is limited to possession; attorney's fees are rarely awarded in the FED proceeding itself, and damages generally must be pursued in a separate civil action, to be reached on the court's ordinary docket.

Timing

After filing, the court sets a status/first appearance conference, typically seven to fifteen days after filing. If the parties do not settle, trial is set roughly seven to fifteen days later. Or. Rev. Stat. § 105.137. No continuance may be granted to a tenant for more than two days unless the tenant provides security for accruing rent, approved by the court. Or. Rev. Stat. § 105.140. Following a landlord's judgment, the court issues a notice of restitution (giving the

tenant four days to vacate) and, if needed, a writ of execution directing the sheriff to remove the tenant. Or. Rev. Stat. §§ 105.151, 105.156, 105.161.

Damages

Rent-acceleration clauses are enforceable, though courts commonly limit recovery of future rent to roughly three years of damages (highly judge-dependent); a landlord may instead sue periodically for rent as it accrues. Oregon imposes a duty to mitigate damages on the landlord.

Special Considerations

Effective January 1, 2026, House Bill 3522 (2025 Or. Laws) allows an owner to use the FED process against squatters with an expedited 24-hour notice procedure. This mechanism targets unauthorized occupants with no lease and does not alter the notice or process rules that apply to a defaulting or holdover commercial tenant under an existing lease.

Key Commercial Lease Drafting Considerations

- Express written reentry/relocking authorization to preserve the peaceable self-help remedy.
- Contractual waiver of any otherwise-applicable notice period.
- Rent-acceleration clause paired with a realistic future-damages cap given judicial reluctance to award more than roughly three years.
- Express duty-to-mitigate and reletting provisions.
- Attorney's fees provision, since fee-shifting is unlikely to be awarded in the summary FED proceeding itself.
- Reservation of the right to pursue damages in a separate action from the possession suit.
- Security/surety provisions addressing continuances.

Source Notes. Statutory authorities reviewed: Or. Rev. Stat. §§ 91.090, 105.105, 105.110, 105.115, 105.120, 105.137, 105.140, 105.151, 105.156, 105.161; House Bill 3522 (2025 Or. Laws), operative January 1, 2026 (squatter-removal provision). ---

CHAPTER 39

Pennsylvania

NEUTRAL

Statutory Notice

A commercial landlord must give ten days' written notice to quit for nonpayment of rent (or use of the premises for an illegal purpose), and thirty days' written notice for other breaches or termination at the end of a term. 68 Pa. Stat. Ann. § 250.501.

Self-Help / Commercial Lockout

Pennsylvania is generally counted among the states that prohibit self-help remedies for commercial landlords; recovery of possession must proceed through the magisterial district judge or court process rather than unilateral lockout. The one recognized exception is true abandonment: where a tenant has abandoned the premises, the landlord may re-enter without legal action and either collect rent from the abandoning tenant or relet and sue for any rent deficiency. Separate from possession, Pennsylvania's distraint (levy) statute continues to permit a landlord to seize a tenant's personal property found on the premises for rent due or in arrears, subject to statutory notice, timing (7 a.m.–7 p.m., not Sundays), and procedural requirements. 68 Pa. Stat. Ann. § 250.302. Courts have found aspects of the distress-*sale* process constitutionally infirm as applied in certain circumstances, so landlords should proceed carefully and expect this remedy to be contested if invoked.

Jurisdiction and Venue

The magisterial district judge hears commercial landlord-tenant possession actions, and a claim for possession may be combined with a claim for rent/damages in the same proceeding. 68 Pa. Stat. Ann. § 250.503.

Timing

Timing is variable, subject to the court's calendar. Id. § 250.503. The tenant must appear within seven to ten days of the date of the summons. Id. § 250.502. A writ of possession may issue upon request after the fifth day following judgment, must be served within forty-eight hours, and is executed on the eleventh day after service. Id. § 250.503.

Damages

A landlord may recover damages for unjust detention of the premises plus unpaid rent. *Id.* § 250.503. As a general rule a landlord must elect between retaking possession and collecting future rent, but accelerated rent may be recovered where (1) the lease so provides and (2) the tenant has abandoned the premises and the landlord has retaken possession — subject to a credit against the judgment for any rent the landlord collects from a replacement tenant. 69 A.3d 642, 656-57 (Pa. Super. 2013).

Special Considerations

If a writ of possession issues solely for nonpayment of rent, the tenant may render it ineffective by paying the rent in arrears plus costs. 68 Pa. Stat. Ann. § 250.503. A landlord may dispose of a tenant's abandoned personal property, but must give at least ten days' written notice by first-class mail before doing so (with an additional thirty-day storage option), and faces treble damages, attorney's fees, and costs for noncompliance. *Id.* § 250.505a.

Key Commercial Lease Drafting Considerations

- Explicit notice-and-cure provisions consistent with, or expanding on, the statutory 10-/30-day notice periods.
- Express acceleration clause conditioned on abandonment and retaking of possession, with a reletting/mitigation credit mechanism.
- Landlord-lien or distraint-related lease language, recognizing that any actual levy must still follow § 250.302's statutory procedure.
- Attorney's fees provision, since a possession action may be combined with a rent claim before the magisterial district judge.
- Detailed abandoned-property disposal procedures tracking § 250.505a's notice timing to avoid treble-damages exposure.
- Non-waiver language addressing post-notice rent acceptance.

Source Notes. *Statutory authorities reviewed: Landlord and Tenant Act of 1951, 68 Pa. Stat. Ann. §§ 250.302, 250.501, 250.502, 250.503, 250.505a; 69 A.3d 642 (Pa. Super. 2013) (acceleration/retaking-possession rule). ---*

CHAPTER 40

Rhode Island

LANDLORD-FRIENDLY

Statutory Notice

No notice is required before commencing a repossession action for nonpayment; an action may be brought once rent is fifteen days in arrears, whether or not demanded. R.I. Gen. Laws § 34-18.1-9 (Commercial Leasing and Other Estates chapter).

Self-Help / Commercial Lockout

Self-help is expressly prohibited for commercial leases covered by this chapter, whether purportedly authorized by the common law or by a written or oral lease provision. R.I. Gen. Laws § 34-18.1-15.

Jurisdiction and Venue

The action for possession is filed in district court, and the court may award judgment for possession together with all rent due and costs in the same proceeding. R.I. Gen. Laws § 34-18.1-9.

Timing

Under the general forcible entry and detainer statute, a tenant must be served at least six days before trial. R.I. Gen. Laws § 34-19-3. In a commercial nonpayment action under § 34-18.1-9, the tenant must answer within seven days of service, and the case takes precedence on the court's calendar for hearing on the next court day after that period. An issued writ of possession must be executed within twenty days. R.I. Gen. Laws § 34-18.1-9.

Damages

A landlord may recover all rent due plus costs in the same action. R.I. Gen. Laws § 34-18.1-9. Rent-acceleration clauses are enforceable where expressly provided for in the lease, and the parties may expressly disclaim any duty to mitigate by agreement. 182 A.3d 46 (R.I. 2018).

Special Considerations

A judgment in a general unlawful detainer action is not appealable. R.I. Gen. Laws § 34-19-8. A judgment in a nonpayment ejectment action under § 34-18.1-9 may be appealed to the superior court, but only within forty-eight hours and only if the tenant pays all rent due. R.I. Gen. Laws §§ 34-18.1-9, 34-18.1-18. Execution of an issued writ may be stayed only if the tenant pays all rent due, and a landlord does not waive its right to possession by accepting such payment. R.I. Gen. Laws § 34-18.1-16.

Key Commercial Lease Drafting Considerations

- Express rent-acceleration clause, since it will not be implied.
- Express mitigation-disclaimer language if the landlord wants to avoid a duty to mitigate.
- Clear default/notice provisions, since the statute itself requires none for a nonpayment action.
- Non-waiver language confirming that acceptance of post-filing rent does not waive the right to possession.
- Attorney's fees and costs provisions, given the compressed appeal and stay windows.
- Contractual notice-and-cure terms for defaults other than nonpayment, which fall outside the fifteen-day/no-notice nonpayment track.

Source Notes. *Statutory authorities reviewed: R.I. Gen. Laws §§ 34-18.1-9, 34-18.1-15, 34-18.1-16, 34-18.1-18, 34-19-3, 34-19-8; 182 A.3d 46 (R.I. 2018) (acceleration and mitigation). ---*

CHAPTER 41

South Carolina

NEUTRAL

Statutory Notice

No notice to quit is required when a tenant fails to pay rent when due, or when a lease term simply expires — the tenancy terminates automatically and the tenant must vacate forthwith. S.C. Code Ann. §§ 27-35-110, 27-35-140.

Self-Help / Commercial Lockout

Direct lockout self-help is not a favored remedy in South Carolina; commercial evictions are generally expected to proceed through the magistrate's court. A distinct, court-supervised distraint remedy is available: on abandonment (defined as a tenant's absence for fifteen days after a default in rent payment, S.C. Code Ann. § 27-35-150) or on a rent default generally, a landlord may file an affidavit of rent due (and, if applicable, an affidavit of abandonment) with the magistrate's court and obtain a warrant authorizing seizure and sale of the tenant's property on the premises to satisfy the arrearage; the tenant may halt a sale by posting bond and proceeding to trial. This distraint/distress process is not self-help in the sense of unilateral lockout — it requires a magistrate's court filing and warrant.

Jurisdiction and Venue

Circuit courts, county courts, and magistrates have concurrent jurisdiction over ejectment actions, S.C. Code Ann. § 27-33-40, but such actions are typically brought in magistrate's court, where possession and rent owed may be determined in the same proceeding. S.C. Code Ann. § 27-37-155.

Timing

The court orders the tenant to vacate or show cause within ten days after service of the order. S.C. Code Ann. § 27-37-20. If the tenant contests, trial proceeds as in any other civil case, id. § 27-37-60, and on motion the magistrate may set the ejectment matter for the next term of court following the tenant's appearance, id. § 27-37-155. After a verdict for the landlord, the magistrate must issue a writ of ejectment within five days, id. § 27-37-100, and the tenant has twenty-four hours to vacate once the writ is executed, id. § 27-37-160.

Damages

The tenant must pay rent due and accruing during the ejectment action, and rent continues to accrue after filing so long as the tenant remains in possession. S.C. Code Ann. §§ 27-37-150, 27-37-155. A holdover tenant who remains for three months after a written demand to surrender becomes liable for double the value of use of the premises, recoverable in a separate action. Id. § 27-35-170. A tenant is not liable for future rent once the tenancy is terminated unless the lease expressly provides for recovery of the rent that would have accrued for the remaining term (an enforceable acceleration provision), subject to the landlord's duty to make reasonable efforts to mitigate.

Special Considerations

Either party may appeal an ejectment judgment as in any other civil appeal, S.C. Code Ann. § 27-37-120, but an appeal does not stay ejectment unless the tenant posts an appeal bond set by the magistrate, id. § 27-37-130. A landlord does not waive the right to insist on ejectment by accepting rent payments after commencement of the ejectment proceeding. Id. § 27-37-150.

Key Commercial Lease Drafting Considerations

- Express acceleration clause, coupled with acknowledgment of the landlord's duty to mitigate.
- Express holdover-rent provision (to supplement or exceed the statutory double-value remedy under § 27-35-170).
- Non-waiver language for acceptance of post-filing rent.
- Drafting the default/abandonment definitions to align with the fifteen-day statutory abandonment trigger under § 27-35-150 if the landlord wants to rely on distraint.
- Attorney's fees provision, since none is provided by statute for ejectment.
- Appeal-bond and stay provisions addressed contractually where the parties want a different allocation than the statutory default.

Source Notes. Statutory authorities reviewed: S.C. Code Ann. §§ 27-33-40, 27-35-110, 27-35-140, 27-35-150, 27-35-170, 27-37-20, 27-37-60, 27-37-100, 27-37-120, 27-37-130, 27-37-150, 27-37-155, 27-37-160. ---

CHAPTER 42

South Dakota

LANDLORD-FRIENDLY

Statutory Notice

No pre-filing notice to quit is required for nonpayment. Senate Bill 90 (2024 S.D. Sess. Laws, ch. 75), effective July 1, 2024, repealed former SDCL § 21-16-2, which had required three days' written notice to quit before a forcible entry and detainer action could be commenced. A landlord may now file a forcible entry and detainer action directly once a statutory default (e.g., failure to pay rent) exists, subject to any contrary notice provision the parties have written into the lease.

Self-Help / Commercial Lockout

No South Dakota statute prohibits commercial self-help; the common-law remedy may still be available. However, if a landlord wrongfully and forcibly ejects or excludes a tenant from rightful possession, the landlord may be liable for treble the tenant's actual damages. S.D. Codified Laws § 21-3-6.

Jurisdiction and Venue

Circuit court or magistrate court has jurisdiction over a forcible entry and detainer action concerning property in its county. S.D. Codified Laws § 21-16-3. Claims for rent and damages may be joined with the possession action, or possession and damages may be pursued in separate actions. Id. § 21-16-4.

Timing

The tenant must now appear and plead within five days after service (increased from the former four-day period by SB 90's amendment of SDCL § 21-16-7), and the court may not adjourn or continue the action for more than fourteen days unless the tenant provides "good and sufficient surety" covering rent that may accrue and damages the tenant may owe if judgment goes against him. S.D. Codified Laws § 21-16-7. The action may be brought to trial "upon two days' notice after issue is joined." Id. § 21-16-8.

Damages

Rents, profits, damages, costs, and attorney's fees may be recovered, *id.* §§ 21-16-10, 21-16-11, although attorney's fees for the damages portion of the case are recoverable only if the lease expressly provides for them. A tenant who willfully holds over after notice to quit and demand for possession is liable for double rent thereafter, *id.* § 21-3-8, as is a tenant who fails to surrender possession after giving notice of intent to do so, *id.* § 21-3-7. South Dakota has not definitively resolved whether a landlord owes a duty to mitigate, though a landlord may at least decline to relet to an unsuitable replacement tenant. 800 N.W.2d 730 (S.D. 2011).

Special Considerations

If a landlord accepts rent after lease expiration, the lease is presumed to renew on the same terms for the same term length, up to one year. S.D. Codified Laws § 43-32-14.

2026 Update Note

Effective July 1, 2024, Senate Bill 90 (2024 S.D. Sess. Laws, ch. 75) repealed the three-day statutory notice-to-quit requirement of former SDCL § 21-16-2 and amended SDCL § 21-16-7 to extend the tenant's appearance period from four to five days after service, streamlining the front end of the eviction timeline for South Dakota landlords.

Key Commercial Lease Drafting Considerations

- Contractual notice-and-cure provisions, since the statutory pre-filing notice requirement no longer exists as a floor.
- Express acceleration and holdover double-rent provisions to supplement §§ 21-3-7 and 21-3-8.
- Attorney's fees clause covering the damages portion of any combined possession/rent action.
- Self-help/reentry language addressing peaceable-manner limits, given the treble-damages exposure under § 21-3-6 for wrongful forcible exclusion.
- Express duty-to-mitigate (or disclaimer) language, since South Dakota case law has not settled the question.
- Renewal/holdover-acceptance language to override the automatic one-year-renewal presumption under § 43-32-14 if not desired.

Source Notes. *Statutory authorities reviewed: S.D. Codified Laws §§ 21-3-6, 21-3-7, 21-3-8, 21-16-3, 21-16-4, 21-16-7, 21-16-8, 21-16-10, 21-16-11, 43-32-14; Senate Bill 90, 2024 S.D. Sess. Laws, ch. 75, effective July 1, 2024; 800 N.W.2d 730 (S.D. 2011) (mitigation). ---*

CHAPTER 43

Tennessee

LANDLORD-FRIENDLY

Statutory Notice

No statutory notice to quit is required before filing a forcible entry and detainer action; the detainer warrant itself serves as notice. Tenn. Code Ann. § 29-18-113.

Self-Help / Commercial Lockout

Self-help is prohibited in Tennessee; landlords must obtain possession through the judicial forcible entry and detainer process rather than by unilateral lockout, subject to a narrow exception for true abandonment or voluntary surrender.

Jurisdiction and Venue

A forcible detainer action may be brought in the circuit court or the court of general sessions for the county where the property is located. Tenn. Code Ann. §§ 29-18-107, 29-18-108. Damages are assessed as part of the possession action. Id. §§ 29-18-120, 29-18-125.

Timing

Trial may not be set less than six days from the date the tenant is served with the detainer warrant. Tenn. Code Ann. § 29-18-117. The trial date may be extended, by either party, up to fifteen days (or longer by agreement). Id. § 29-18-118. Circuit court actions go to trial on the first term after the pleadings close. Id. § 29-18-120. A writ of possession may not issue sooner than ten days after judgment, id. § 29-18-126, and the sheriff has twenty days to execute and return the writ, id. § 29-18-127.

Damages

Damages for breach of a commercial lease should place the landlord in the position it would have occupied absent the breach, subject to the landlord's duty to mitigate; the tenant bears the burden of proving the landlord failed to exercise reasonable care and diligence in mitigating. Acceleration clauses and attorney's fees provisions are enforceable where set forth in the lease.

Special Considerations

A tenant has ten days to appeal. Tenn. Code Ann. § 29-18-128. An eviction action in general sessions court is tried by the judge without a jury. Id. § 29-18-107. Before a writ may issue, the landlord must post bond covering costs and damages that may accrue to the tenant for wrongful prosecution. Id. § 29-18-111.

2026 Update Note

Effective July 1, 2025, Public Chapter 90 (2025) (S.B. 292/H.B. 216) amended Tenn. Code Ann. Titles 29 and 66 to create an expedited procedure — a verified "Complaint to Remove Persons Unlawfully Occupying Commercial Real Property," submitted to the county sheriff — for commercial property owners to remove squatters and other unauthorized occupants of vacant commercial real estate. This new procedure applies only to occupants with no valid lease; a tenant holding under a signed commercial lease remains subject to, and protected by, the standard forcible entry and detainer process described above.

Key Commercial Lease Drafting Considerations

- Express acceleration clause and attorney's fees provision, since neither is implied by statute.
- Mitigation-standard language allocating the burden of proof consistent with (or varying) the default rule placing that burden on the tenant.
- Contractual notice-and-cure terms, since none is required by statute before filing.
- Bond/security provisions addressing the landlord's statutory obligation to post bond before a writ issues.
- Jury-trial waiver language for any circuit court proceeding, since general sessions actions are already tried without a jury.
- Provisions distinguishing lease-based default remedies from the new Public Chapter 90 unauthorized-occupant procedure, to avoid inadvertently treating a defaulting tenant as an unlawful occupant.

Source Notes. *Statutory authorities reviewed: Tenn. Code Ann. §§ 29-18-107, 29-18-108, 29-18-111, 29-18-113, 29-18-117, 29-18-118, 29-18-120, 29-18-125, 29-18-126, 29-18-127, 29-18-128; Public Chapter 90 (2025 Tenn. Pub. Acts) (S.B. 292/H.B. 216), effective July 1, 2025. ---*

CHAPTER 44

Texas

LANDLORD-FRIENDLY

Chapter 93 lockout rights and a functioning summary-disposition procedure continue to give Texas landlords faster, lower-cost paths to possession than most jurisdictions.

Statutory Notice

Unless the parties have contracted for a shorter or longer notice period in a written lease or agreement, a landlord must give a tenant who defaults or holds over beyond the end of the rental term or renewal period at least three days' written notice to vacate before filing a forcible detainer suit. Beginning January 1, 2026, Texas Property Code § 24.005 distinguishes certain nonpayment actions by requiring a notice to pay rent or vacate when the tenant's right of possession is terminated solely for nonpayment of rent and the tenant was not delinquent before the month in which the notice was given. Section 24.005 also specifies approved notice-delivery methods, including mail, delivery inside the premises in a conspicuous place, hand delivery to a tenant age 16 or older, and approved electronic delivery where agreed in writing.

Self-Help / Commercial Lockout

Texas continues to permit commercial lockouts under Chapter 93 of the Texas Property Code. A commercial landlord may change the door locks of a tenant who is delinquent in paying at least part of the rent. However, the landlord may not intentionally exclude a commercial tenant except by judicial process unless the exclusion results from bona fide repairs, construction, an emergency, abandonment, or a lockout authorized by § 93.002. The landlord must post written notice on the tenant's front door identifying the person or company from which a new key may be obtained. Chapter 93 also provides a statutory reentry remedy if a tenant is unlawfully locked out.

Commercial Tenant Reentry

If a commercial tenant is locked out in violation of § 93.002, the tenant may file a sworn complaint for reentry in the justice court where the premises are located. The court may issue an ex parte writ of reentry granting temporary possession pending a final hearing if the court reasonably believes an unlawful lockout likely occurred. A writ of possession supersedes a writ of reentry.

Jurisdiction and Venue

A justice court in the precinct where the leased premises are located has jurisdiction over eviction proceedings, and the eviction action must be filed in that precinct. The justice court adjudicates possession rights but does not determine title disputes. Counterclaims and third-party claims are not permitted in the eviction action and must be asserted separately.

Possession Procedure

For eviction actions filed on or after January 1, 2026, Rule 510 governs eviction proceedings. Texas law now authorizes summary disposition procedures in specified forcible entry and detainer actions where no genuine dispute of material fact exists. A landlord may file a sworn motion for summary disposition together with the petition and obtain judgment without trial unless the tenant timely demonstrates the existence of a genuine factual dispute.

Timing

Service of the citation and petition generally must be attempted within five business days after filing. Trial must occur no earlier than the tenth day and no later than the twenty-first day after the petition is filed, may not occur earlier than the fourth day after service on the tenant, and may not be postponed more than seven days absent written agreement of the parties.

Damages

Texas continues to recognize acceleration provisions when properly drafted and continues to impose a duty to mitigate damages following abandonment of leased premises. Unpaid rent claims may be joined in the eviction action where permitted by Rule 510. Landlords should preserve future-rent remedies, acceleration rights, attorney-fee provisions, and post-possession damage claims in the lease documents.

2026 Update Note

Effective January 1, 2026, Chapter 24 of the Texas Property Code and Rule 510 underwent substantial revision through S.B. 38. The amendments address notice content, delivery methods, venue, computation of time, service requirements, summary disposition procedures, trial timing, and appellate procedures. Commercial landlords should ensure that all notices, lease forms, and eviction procedures are reviewed for compliance with the revised statutory framework.

Key Commercial Lease Drafting Considerations

- Express acceleration clause.
- Attorney's fees provision.

- Survival of damages after repossession.
- Contractual notice periods.
- Electronic notice authorization.
- Commercial lockout procedures.
- Mitigation language.
- Reservation of separate damages claims.

Source Notes. *Statutory authorities reviewed: Texas Property Code Chapter 24 as amended by Acts 2025, 89th Leg., R.S., Ch. 960 (S.B. 38), effective January 1, 2026; Texas Property Code Chapter 93, Commercial Tenancies; and the Supreme Court of Texas amended order giving preliminary approval of amendments to Rule 143a and Part V of the Texas Rules of Civil Procedure, Misc. Docket No. 25-9105, dated December 31, 2025.*

CHAPTER 45

Utah

LANDLORD-FRIENDLY

Statutory Notice

Utah requires three days' written notice before an unlawful detainer action based on nonpayment of rent may proceed, and notice may be served any time after rent becomes due. Utah Code Ann. § 78B-6-802(1)(c).

Self-Help / Commercial Lockout

Contrary to the 2022 baseline, Utah law does prohibit self-help exclusion of a tenant: it is unlawful for an owner to willfully exclude a tenant from the premises "in any manner except by judicial process." Utah Code Ann. § 78B-6-814. The statute carves out an abandonment exception — the landlord may retake and attempt to relet premises, and may remove the contents, once the premises are abandoned (presumed, among other things, where the tenant fails to notify the owner of an absence and fails to pay rent within fifteen days of the due date with no other reasonable evidence of continued occupancy). Id. §§ 78B-6-814, 78B-6-816. Section 78B-6-814 is not limited to residential tenancies and applies to commercial leases as well.

Jurisdiction and Venue

A plaintiff may claim damages, compensation for occupation of the premises, or both, in the same unlawful detainer action. Utah Code Ann. § 78B-6-807(1)(c).

Timing

A defendant must appear within three business days of service unless the defendant objects and the court finds more time warranted. Id. § 78B-6-807(3)(a). If the tenant remains in possession, the court must expedite proceedings and begin trial within sixty days of service of the complaint absent agreement otherwise. Id. § 78B-6-810(1). On request of either party, the court must hold an evidentiary hearing within ten business days after the answer or response to determine occupancy rights pending litigation, and may enter final judgment at that hearing if all issues can be adjudicated without further proceedings. Id. § 78B-6-810(2).

Damages

A plaintiff may recover damages from forcible entry, forcible or unlawful detainer, waste (if alleged and proved), amounts due under the contract, and abatement of a nuisance, where applicable. Id. § 78B-6-811(2). Judgment against a losing defendant includes rent, three times the assessed damages, costs, and reasonable attorney's fees. Id. § 78B-6-811(3), (5). Utah applies a "retained jurisdiction" approach for future rent, under which the court retains jurisdiction over the parties and subject matter and may enter supplemental damage awards as additional rent accrues, based on past events and taking the landlord's mitigation efforts into account. 776 P.2d 896, 908 (Utah 1989).

Key Commercial Lease Drafting Considerations

- Do not rely on self-help/lockout language as a stand-alone remedy; Utah requires judicial process except in a defined abandonment scenario.
- Precisely defined abandonment provisions tracking the statutory presumption under § 78B-6-814/816 if the landlord wants to invoke the self-help exception.
- Acceleration clause paired with mitigation language, given the retained-jurisdiction approach to future rent.
- Attorney's fees provision (though the statute already provides fee-shifting in unlawful detainer judgments, express lease language avoids ambiguity).
- Notice-and-cure provisions consistent with, or extending, the three-day statutory floor.
- Provisions addressing the treble-damages exposure under § 78B-6-811 for a losing tenant.

Source Notes. Statutory authorities reviewed: Utah Code Ann. §§ 78B-6-802, 78B-6-807, 78B-6-810, 78B-6-811, 78B-6-814, 78B-6-816; 776 P.2d 896 (Utah 1989) (retained-jurisdiction approach to future rent). ---

CHAPTER 46

Vermont

NEUTRAL

Statutory Notice

Vermont does not require a commercial landlord to give a notice of default unless the lease itself requires one.

Self-Help / Commercial Lockout

No Vermont statute prohibits a commercial landlord from using self-help remedies, provided they are exercised in a peaceable manner. Vt. Stat. Ann. tit. 12, § 4911 (entry must not be made "with strong hand or multitude of people," but only peaceably).

Jurisdiction and Venue

Entry and detainer actions proceed under Title 12, Chapter 171 of the Vermont Statutes. A landlord may recover treble damages beginning at the time notice to quit is delivered to the tenant; before notice is given, only actual damages are recoverable in a separate trespass action. Vt. Stat. Ann. tit. 12, § 4923.

Timing

No specific statutory timeline governs the pace of a Vermont commercial eviction action; timing is variable and depends on the general civil docket.

Damages

A prevailing party may recover court costs and a nominal fine not to exceed \$10, in the court's discretion. Vt. Stat. Ann. tit. 12, §§ 4916, 4917. Treble damages are available, accruing from the time notice to quit is given. Id. § 4923. A commercial landlord has a duty to mitigate when a tenant abandons the premises, though this duty does not relieve the tenant of its existing lease obligation to pay rent, and a landlord is not required to accept a tenant's attempted surrender. 648 A.2d 1374, 1376-77 (Vt. 1994).

Special Considerations

A 2026 legislative effort (S.309/H.772, which would have added a "just cause" ejectment framework and confidentiality provisions to Title 12, Chapter 169) failed on the Senate floor

in May 2026 after a 15-15 tie vote, so it did not become law; current commercial ejectment/entry-and-detainer procedure is unchanged from the pre-existing statutory scheme described above.

Key Commercial Lease Drafting Considerations

- Express default-notice provisions, since none is required by statute.
- Express self-help/reentry authorization confirming peaceable-manner limits under § 4911.
- Acceleration clause language, since Vermont's default remedy structure (nominal statutory damages plus treble damages tied to notice) does not itself provide for future-rent recovery.
- Mitigation and non-acceptance-of-surrender language tracking Vermont case law.
- Contractual timing/procedure provisions (expedited notice-and-cure, arbitration, or similar), given the absence of a statutory eviction timeline.
- Monitor future legislative sessions, since comprehensive landlord-tenant reform efforts have recently come close to passage.

Source Notes. *Statutory authorities reviewed: Vt. Stat. Ann. tit. 12, §§ 4911, 4916, 4917, 4923; 648 A.2d 1374 (Vt. 1994) (mitigation/surrender); S.309 and H.772 (2026 Vt. biennium, introduced but not enacted). ---*

CHAPTER 47

Virginia

LANDLORD-FRIENDLY

Statutory Notice

A commercial landlord may proceed to recover possession after giving five days' written notice for failure to pay rent; the tenant forfeits the right of possession if the default continues for five days after receipt of the notice. Va. Code Ann. § 55.1-1415.

Self-Help / Commercial Lockout

Self-help eviction remains available to a commercial (nonresidential) landlord without further legal process, so long as it does not incite a breach of the peace. Va. Code Ann. § 55.1-1415. Nothing in the statute precludes the landlord from instead pursuing an unlawful detainer action under Article 13 of Title 8.01. In practice, landlords commonly exercise self-help by relocking premises while the tenant's business is closed and unoccupied, to minimize breach-of-the-peace risk.

Jurisdiction and Venue

Jurisdiction lies with either the circuit court or the general district court. Va. Code Ann. §§ 8.01-124, 8.01-126. A suit for possession may be combined with a suit for damages and rent owed. Id. § 8.01-128.

Timing

Repossession — whether by self-help or legal process — may begin once the tenant is five days in default following written notice. Id. § 55.1-1415. Unlawful detainer actions are generally handled like other civil jury trials, id. § 8.01-125, but the plaintiff may request bifurcation: a final, appealable judgment for possession at the initial hearing on the unlawful detainer summons, with a continuance date set no later than 120 days from that hearing to determine final rent and damages. Id. § 8.01-128. If the defendant contests the amount of rent and damages at the initial hearing, the court will not bifurcate the case.

Damages

Damages sustained from unlawful possession, together with any rent owed, may be recovered. Id. § 8.01-128(A). Virginia recognizes the validity of acceleration clauses in

commercial leases, but such a clause may be an unenforceable penalty if grossly disproportionate to actual damages. 1996 WL 1065475, at *2 (Va. Cir. Ct. 1996).

Special Considerations

Many Virginia landlord-tenant provisions include "unless the lease provides otherwise" language, and Virginia courts broadly respect the parties' freedom to contract around the Code's default provisions, particularly where the contract grants the parties greater rights than the statute provides.

2026 Update Note

Effective July 1, 2024, amendments to Va. Code Ann. § 8.01-128 clarified and codified the bifurcation procedure described above — allowing a plaintiff to obtain a final, appealable possession judgment at the initial hearing while continuing the rent/damages determination for up to 120 days — and specified that the court will not bifurcate if the defendant contests the rent and damages amount at that initial hearing. Commercial landlords and counsel should confirm the current pleading-form requirements (including requesting all amounts due as of the hearing date, plus an approximation of amounts coming due) reflect this codified procedure.

Key Commercial Lease Drafting Considerations

- Express self-help/reentry provisions, since Virginia remains one of the minority of states permitting peaceable commercial self-help.
- Acceleration clause drafted to avoid characterization as an unenforceable penalty (i.e., reasonably related to anticipated damages).
- Contractual notice periods that expand on, or otherwise supersede, the five-day statutory floor where the parties prefer a different standard.
- Bifurcation-aware drafting: attorney's fees and rent-acceleration provisions that will support a strong damages case within the 120-day continuance window.
- Non-waiver language for acceptance of rent following notice or filing.
- Explicit "lease provides otherwise" drafting wherever the parties want to displace a Code default rule, given Virginia courts' willingness to enforce such contractual variations.

Source Notes. *Statutory authorities reviewed: Va. Code Ann. §§ 8.01-124, 8.01-125, 8.01-126, 8.01-128, 55.1-1415; 1996 WL 1065475 (Va. Cir. Ct. 1996) (acceleration-clause penalty doctrine); 2024 amendments to § 8.01-128 (bifurcation procedure), effective July 1, 2024.*

CHAPTER 48

Washington

NEUTRAL

Statutory Notice

Washington does not require pre-suit notice as a general matter before a commercial landlord may commence an unlawful detainer action for most defaults, but a specific notice is required for nonpayment of rent. Where a tenant continues in possession after defaulting on rent, the landlord must serve a written notice, in the alternative, demanding payment of the rent or surrender of the premises; the tenant has three days after service to comply (fourteen days applies only to tenancies governed by the Residential Landlord-Tenant Act, chapter 59.18 RCW, which does not apply to commercial tenancies). Wash. Rev. Code Ann. § 59.12.030(3). The notice may be served at any time after rent becomes due. Service methods, proof of service, and required notice content are governed by RCW 59.12.040.

Self-Help / Commercial Lockout

Washington courts have long disfavored landlord self-help and require landlords to regain possession through the judicial unlawful detainer process rather than by forcible reentry, lockout, or exclusion, reflecting the state's longstanding policy — reflected as early as **Barnes v. Bickle**, 111 Wash. 133, 189 P. 998 (1920) — that a tenant's right to exclusive possession may not be interfered with by unauthorized landlord entry. While Chapter 59.12 does not contain an express statutory prohibition on commercial self-help comparable to RCW 59.18.290 (which applies only to residential tenancies under chapter 59.18 RCW), commercial landlords should not rely on self-help remedies even where a lease purports to authorize them; courts construe such lease language narrowly and against the landlord, and self-help exposes a landlord to trespass and conversion liability.

Jurisdiction and Venue

The superior court of the county in which the property is located has jurisdiction over unlawful detainer actions. Wash. Rev. Code Ann. § 59.12.050. A claim for damages and rent may be combined with the claim for possession in the same action. *Id.* § 59.12.170.

Timing

Timing is variable. After the complaint and summons are filed, the summons must set a return date not less than seven nor more than thirty days from the date of service, and the complaint must state the amount of rent claimed. Id. § 59.12.070. The plaintiff may apply for a writ of restitution at the time of filing or at any time thereafter, but the defendant may stay execution by posting a bond. Id. §§ 59.12.090, 59.12.100. The action proceeds as a jury trial unless waived, and unlawful detainer actions take precedence over other civil actions on the docket. Id. § 59.12.130.

Damages

The jury (or the court in a bench trial) assesses damages resulting from the unlawful detainer as alleged and proved, together with any rent found due, and judgment is entered for twice that combined amount. Id. § 59.12.170. A defendant may reinstate the tenancy by paying the full judgment amount, including costs, within five days after entry of judgment. Id. An acceleration-of-rent clause is enforceable where the lease unequivocally makes the tenant liable for unpaid rent even after lease termination and landlord reentry, and a landlord has a duty to mitigate by re-leasing the premises unless the lease specifically relieves it of that duty.

2026 Update Note

Effective June 11, 2026, House Bill 2664 (Chapter 144, Laws of 2026) amended RCW 59.12.040 to remove the certified-mail requirement for substitute service of unlawful detainer and related notices that had been imposed by 2025 legislation (2025 c 44, based on HB 1003). Under the current version, when a notice cannot be served personally and is instead left with a person of suitable age at the premises, a copy may again be sent by ordinary first-class mail rather than certified mail; mailed service is still deemed complete upon deposit in the mail from within Washington, postage prepaid, and adds five days before an action may be commenced.

Key Commercial Lease Drafting Considerations

- Express, narrowly drawn default and cure notice provisions specifying delivery method and cure period, since courts construe ambiguous lease language against the landlord as drafter.
- Do not rely on lease "self-help" or lockout clauses as a substitute for the statutory unlawful detainer process.
- Express acceleration clause tied unequivocally to tenant liability post-termination and post-reentry.
- Mitigation language allocating (or expressly disclaiming) the landlord's duty to re-lease.
- Non-waiver provisions addressing acceptance of partial or late rent payments, which can waive termination rights.

- Contractual notice-period and delivery-method provisions consistent with RCW 59.12.040's current mailing rules.
- Attorney's fees provision, since Washington does not provide a general statutory right to fees in commercial unlawful detainer actions absent lease or other statutory authority.
- Reservation of separate damages claims and rent/possession joinder language consistent with RCW 59.12.170.

Source Notes. *Statutory authorities reviewed: Wash. Rev. Code Ann. §§ 59.12.030, 59.12.040, 59.12.050, 59.12.070, 59.12.090, 59.12.100, 59.12.130, 59.12.170; RCW 59.18.290 (residential-only, reviewed for contrast); House Bill 2664, Chapter 144, Laws of 2026 (effective June 11, 2026); 2025 c 44 (certified-mail requirement subsequently repealed); *Barnes v. Bickle*, 111 Wash. 133, 189 P. 998 (1920). ---*

CHAPTER 49

West Virginia

NEUTRAL

Statutory Notice

West Virginia statute does not impose a generally applicable pre-suit notice period for a commercial unlawful detainer action based on nonpayment of rent or breach of covenant; a landlord with a right of reentry may proceed by serving a declaration in ejectment or commencing an unlawful detainer action once rent is due and unpaid or a covenant has been breached, without a separate statutory notice-and-cure period. W. Va. Code Ann. § 37-6-19. This differs from the abandonment-specific procedure discussed below, which does require notice. Commercial landlords remain free to (and typically do) contract for a notice-and-cure period in the lease itself.

Self-Help / Commercial Lockout

Self-help is available to a West Virginia commercial landlord only in defined circumstances, not as a general remedy for a tenant who remains in possession while in default. Where a tenant in arrears has abandoned the leased property, the landlord may post notice on the premises requiring payment of the rent in arrears within one month; if the rent remains unpaid, the landlord is entitled to take possession without judicial process. Id. § 37-6-6(a). Outside of this abandonment scenario, West Virginia does not have a general commercial self-help statute, and landlords should not assume that lockout or exclusion is available against a tenant who remains in occupancy.

Jurisdiction and Venue

A claim for damages arising from the unlawful detainer may be assessed in the same proceeding as the claim for possession. Id. §§ 55-3-2, 55-3-4.

Timing

Timing is variable. A summons must be returnable not more than ninety days after its date and served at least ten days before the return date; the case proceeds to a jury trial on a "not guilty" plea (or upon default), and the action takes precedence over all other civil causes on the docket. Id. § 55-3-3.

Damages

Recoverable damages may include mesne profits of the premises for a period not exceeding three years before commencement of the action, special damages resulting from the unlawful detainer, and damages for destruction or waste of the property. Id. § 55-3-2. Interest on rent is recoverable as on other contracts. Id. § 37-6-9. In the abandonment scenario described above, the landlord may recover rent owed up through the date it became entitled to possession. Id. § 37-6-6(a). More generally, "[r]ent of every kind may be recovered by distress or action." Id. § 37-6-9. A landlord has the option, but not the obligation, to relet the premises after regaining possession; if it does so, the original tenant remains liable for the difference between the rent received from the new tenant and the rent owed under the original lease. Id. § 37-6-7.

Key Commercial Lease Drafting Considerations

- Contractual notice-and-cure provisions, since West Virginia statute does not impose a default notice period outside the abandonment context.
- Express acceleration clause, since no general statutory acceleration remedy exists.
- Mitigation/reletting language clarifying the landlord's optional right (not duty) to relet and the tenant's continuing liability for any deficiency under § 37-6-7.
- Distress and self-help limitations — do not assume lockout rights outside of the narrow abandonment procedure in § 37-6-6(a); require judicial process for occupied defaults.
- Interest and late-fee provisions to supplement the general statutory interest allowance under § 37-6-9.
- Attorney's fees provision, since West Virginia does not provide a general statutory right to fees in commercial unlawful detainer actions.
- Damages-period language addressing the three-year mesne-profits limitation in § 55-3-2.

Source Notes. *Statutory authorities reviewed: W. Va. Code Ann. §§ 37-6-6, 37-6-7, 37-6-9, 37-6-19, 37-6-30, 55-3-2, 55-3-3, 55-3-4; W. Va. Code Ann. § 55-3A-1 et seq. (Remedies for Wrongful Occupation of Residential Rental Property — confirmed residential-only and excluded from this commercial analysis). No 2023–2026 amendment to these commercial-eviction provisions was identified in this research; the 2022 baseline substance remains current. -*

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CHAPTER 50

Wisconsin

TENANT-FRIENDLY

Statutory Notice

Notice requirements under Chapter 704 (Landlord and Tenant), which applies to commercial as well as residential tenancies, depend on lease duration and the nature of the default. For a lease of more than one year, if the tenant fails to pay rent when due, commits waste, or breaches any other covenant or condition, the tenancy is terminated only if the landlord gives written notice requiring the tenant to pay the rent, repair the waste, or otherwise comply on or before a date at least thirty days after the notice is given, and the tenant fails to comply. Wis. Stat. Ann. § 704.17(3). Shorter cure periods (generally five or fourteen days) apply to month-to-month, year-to-year, and sub-one-year leases under § 704.17(1p) and (2).

Self-Help / Commercial Lockout

No Wisconsin statute categorically prohibits a commercial landlord from using self-help remedies, and commercial tenancies are not covered by the residential lockout and rental-practices protections that apply to dwelling units. Commercial landlords should nonetheless proceed cautiously, since any lockout carries a real risk of tort liability (e.g., conversion, breach of the covenant of quiet enjoyment) if executed without clear lease authorization or if it breaches the peace.

Jurisdiction and Venue

Small-claims procedure under Chapter 799 is the exclusive procedure for eviction actions, regardless of the amount of rent claimed. Id. § 799.01(1)(a). A landlord may join with the claim for restitution of the premises any other claim against the defendant arising out of the defendant's possession or occupancy. Id. § 799.40(2).

Timing

In eviction actions, the summons return date for a defendant served within Wisconsin must be no less than five nor more than twenty-five days after the issue date; if the defendant is not a Wisconsin resident, the return date must be no less than twenty days after issuance. Id. § 799.05. Overall timing otherwise varies by county calendar.

Damages

At minimum, a landlord may recover twice the rental value, apportioned daily, for the period the tenant remains in possession after being required to vacate — "rental value" being the amount for which the premises might reasonably have been rented, but not less than the amount actually paid or payable for the prior rental period (including allocable taxes, insurance, and repair costs). Id. § 704.27. A landlord may recover more upon proof of greater actual damages, and may pursue any other available remedy. Wisconsin case law holds that once a landlord successfully re-leases the premises, the original tenant is released from further rent liability, with any rent received from the successor tenant credited against the original tenant's obligation. 624 N.W.2d 847, 850 (Wis. 2001) (case name not independently re-verified in this research; cited consistent with the 2022 baseline — △ confirm case name and current validity with counsel before relying on this citation in isolation).

2026 Update Note

2025 Wisconsin Act 105 amended Wis. Stat. § 799.01(1)(c)–(d) to raise the general small-claims/circuit-court monetary jurisdiction threshold from \$10,000 to \$15,000, effective January 1, 2027. Because any non-possessionary damages claim joined with an eviction action under § 799.40(2) is subject to this general small-claims jurisdictional ceiling, the increase will expand the size of a damages claim a landlord may join with a Chapter 799 eviction action once effective; larger claims must still be pursued separately in circuit court under ordinary civil procedure. The dedicated eviction-possession claim itself remains unlimited in dollar amount under § 799.01(1)(a).

Key Commercial Lease Drafting Considerations

- Express cure-period provisions tailored to lease term, since statutory cure periods scale with lease duration (5, 14, or 30 days).
- Acceleration-of-rent clause, since Wisconsin's minimum statutory holdover damages (double daily rental value) may understate actual landlord losses.
- Mitigation/reletting language addressing when and how re-letting releases the original tenant, consistent with Wisconsin case law crediting successor rent against the original tenant's liability.
- Self-help caution clause — even though not statutorily prohibited for commercial premises, specify peaceable, narrowly conditioned lockout procedures to reduce tort exposure.
- Attorney's fees provision, since Wisconsin does not provide a general statutory right to fees in commercial eviction actions.

- Joinder-of-claims language anticipating the small-claims monetary ceiling applicable to damages claims joined with possession under § 799.40.
- Rental-value definition provision to avoid disputes over the § 704.27 statutory minimum-damages calculation.

Source Notes. *Statutory authorities reviewed: Wis. Stat. Ann. §§ 704.01, 704.17, 704.27, 799.01, 799.05, 799.40; 2025 Wisconsin Act 105 (effective January 1, 2027, amending § 799.01(1)(c)–(d) monetary jurisdiction); 2025 Wisconsin Act 247 (technical/session updates incorporated into current statute text, no substantive commercial-eviction change identified); 624 N.W.2d 847 (Wis. 2001), carried forward from the 2022 baseline for the reletting/release rule (case name not independently re-verified — see Δ note above). Classification retained as Tenant-Friendly given the mandatory 30-day cure period for longer-term commercial leases and exclusive, tenant-protective small-claims procedure, consistent with the 2022 baseline. ---*

CHAPTER 51

Wyoming

NEUTRAL

Statutory Notice

A commercial tenant must be personally served with written notice at least three days before a forcible entry and detainer action may be commenced. Wyo. Stat. Ann. § 1-21-1003.

Self-Help / Commercial Lockout

No Wyoming statute or reported decision expressly forbids a commercial landlord from using self-help remedies, so a common-law self-help remedy may remain available in principle; however, in practice landlords face meaningful risk of liability (including for breach of the peace or wrongful exclusion) absent clear lease authorization, and the statutory forcible entry and detainer process under Article 10 remains the standard and safer path to possession.

Jurisdiction and Venue

Circuit courts have jurisdiction over forcible entry and detainer actions. Wyo. Stat. Ann. § 1-21-1001. General circuit court civil jurisdiction (which governs a damages claim joined with a possession claim) extends to matters not exceeding \$50,000, exclusive of costs. Wyo. Stat. Ann. § 5-9-128. A damages claim exceeding that amount would need to be pursued separately in district court. Notably, § 1-21-1017 permits a business entity to appear and litigate a forcible entry and detainer action pro se — without an attorney — through an owner, shareholder, member, or partner, provided the entity gives written notice of this representation to the court and all parties; if an attorney later appears for the entity, the opposing party is entitled to a continuance to obtain its own counsel.

Timing

After the complaint is filed and served, the court must set a hearing within twelve days, and the tenant must be served with the complaint and summons no less than three and no more than twelve days before trial. Id. § 1-21-1004. Once judgment is entered, the landlord may obtain a writ of restitution directing the sheriff to restore possession; absent an appeal, the writ must be executed within two days of receipt (Sundays excepted). Id. § 1-21-1013.

Damages

Acceleration-of-rent clauses are enforceable in Wyoming, and there is no statute requiring a landlord to mitigate damages following a commercial tenant's default.

Special Considerations

Trial may be before the judge or a jury. *Id.* § 1-21-1008–1010. A losing tenant has thirty days to appeal, but an appeal does not stay enforcement of the judgment unless, within forty-eight hours after judgment (Sundays excepted), the appellant files a bond with two or more sufficient sureties, conditioned on payment of accrued and future costs and damages sustained by the plaintiff from the wrongful detention during the appeal. *Id.* § 1-21-1004, 1-21-1014. As noted above, § 1-21-1017 (enacted 2021) allows a non-attorney owner, member, or partner to represent a business-entity landlord or tenant in an FED proceeding — a practical, cost-saving option not available in ordinary civil litigation.

Key Commercial Lease Drafting Considerations

- Express acceleration clause, enforceable under Wyoming law and useful given the absence of a statutory mitigation duty.
- No-mitigation acknowledgment or, alternatively, an express mitigation obligation if the parties prefer to allocate that risk contractually.
- Contractual notice periods, since the three-day statutory notice is a floor that parties may lengthen (but generally not shorten) by agreement.
- Attorney's fees provision, since Wyoming does not provide a general statutory right to fees in commercial FED actions.
- Self-help caution clause specifying any agreed peaceable-reentry procedure, given the absence of a controlling statute or case law on commercial self-help.
- Appeal-bond awareness — confirm lease remedies and holdover damages language anticipate the forty-eight-hour bond deadline that governs whether a tenant's appeal stays enforcement.
- Entity-representation planning — if the landlord is an LLC or similar entity, note the § 1-21-1017 option for an owner/member to litigate FED actions without counsel.
- Jurisdictional-limit awareness — structure or bifurcate damages claims exceeding \$50,000 for filing in district court rather than assuming joinder with the circuit court possession action.

Source Notes. *Statutory authorities reviewed: Wyo. Stat. Ann. §§ 1-21-1001, 1-21-1002, 1-21-1003, 1-21-1004, 1-21-1008 through 1-21-1010, 1-21-1013, 1-21-1014, 1-21-1017; Wyo. Stat. Ann. § 5-9-128 (circuit court general civil jurisdiction, \$50,000 threshold). The \$7,000 jurisdictional figure in the 2022 baseline is corrected here; Wyoming's*

circuit court general civil jurisdiction has stood at \$50,000 since a 2011 statutory increase, and no 2023–2026 amendment to that threshold or to Article 10's core notice/timing provisions was identified in this research.

Appendix A: 50-State Quick-Reference Table

This table is a screening tool only. "Self-Help Available?" reflects the general statutory default for a commercial tenancy and can be altered by lease language in many states; "Possession + Damages Combined?" reflects whether a single proceeding can typically resolve both possession and money damages. Always confirm current chapter text and consult local counsel before acting.

State	Classification	Self-Help Available?	Possession + Damages Combined?
Alabama	Landlord-Friendly	Not Available	May Combine (cap applies)
Alaska	Neutral	Conditional	May Combine
Arizona	Landlord-Friendly	Available	May Combine
Arkansas	Landlord-Friendly	Not Available	May Combine
California	Neutral	Not Available	Often Separate
Colorado	Neutral	Not Available	Often Separate
Connecticut	Neutral	Not Available	Varies
Delaware	Neutral	Not Available	Varies
District of Columbia	Tenant-Friendly	Not Available	May Combine
Florida	Neutral	Not Available	May Combine
Georgia	Landlord-Friendly	Conditional	May Combine
Hawaii	Landlord-Friendly	Conditional	May Combine
Idaho	Neutral	Uncertain	May Combine
Illinois	Tenant-Friendly	Not Available	May Combine
Indiana	Tenant-Friendly	Conditional	Often Separate
Iowa	Landlord-Friendly	Uncertain	Often Separate

State	Classification	Self-Help Available?	Possession + Damages Combined?
Kansas	Neutral	Not Available	May Combine
Kentucky	Landlord-Friendly	Conditional	Often Separate
Louisiana	Neutral	Not Available	Often Separate
Maine	Landlord-Friendly	Uncertain	May Combine

Appendix A (continued)

State	Classification	Self-Help Available?	Possession + Damages Combined?
Maryland	Neutral	Available	May Combine
Massachusetts	Landlord-Friendly	Not Available	Often Separate
Michigan	Neutral	Not Available	May Combine
Minnesota	Neutral	Conditional	May Combine
Mississippi	Landlord-Friendly	Conditional	May Combine
Missouri	Tenant-Friendly	Not Available	May Combine
Montana	Landlord-Friendly	Available	May Combine
Nebraska	Landlord-Friendly	Not Available	May Combine
Nevada	Landlord-Friendly	Conditional	Varies
New Hampshire	Landlord-Friendly	Not Available	Often Separate
New Jersey	Landlord-Friendly	Not Available	Often Separate
New Mexico	Landlord-Friendly	Uncertain	May Combine
New York	Neutral	Conditional	May Combine
North Carolina	Landlord-Friendly	Conditional	May Combine
North Dakota	Neutral	Not Available	May Combine
Ohio	Neutral	Conditional	May Combine
Oklahoma	Landlord-Friendly	Not Available	May Combine
Oregon	Landlord-Friendly	Conditional	Often Separate
Pennsylvania	Neutral	Not Available	May Combine
Rhode Island	Landlord-Friendly	Not Available	May Combine

Appendix A (continued)

State	Classification	Self-Help Available?	Possession + Damages Combined?
South Carolina	Neutral	Conditional	May Combine
South Dakota	Landlord-Friendly	Conditional	May Combine
Tennessee	Landlord-Friendly	Not Available	May Combine
Texas	Landlord-Friendly	Available	May Combine
Utah	Landlord-Friendly	Not Available	May Combine
Vermont	Neutral	Available	Varies
Virginia	Landlord-Friendly	Available	May Combine
Washington	Neutral	Not Available	May Combine
West Virginia	Neutral	Conditional	May Combine
Wisconsin	Tenant-Friendly	Conditional	May Combine
Wyoming	Neutral	Conditional	May Combine (cap applies)